



Ordinary Meeting

BUSINESS PAPER

Tuesday, 26 November 2019 at 7:00 pm

Griffith City Council Chambers
Phone: (02) 6962 8100 Fax (02) 6962 7161
Web: www.griffith.nsw.gov.au Email: admin@griffith.nsw.gov.au



COUNCILLORS

John Dal Broi (Mayor)
Doug Curran (Deputy Mayor)
Glen Andreazza
Simon Croce
Deb Longhurst
Eddy Mardon
Rina Mercuri
Anne Napoli
Mike Neville
Brian Simpson
Christine Stead
Dino Zappacosta

idalbroi@griffith.com.au
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rmercuri@griffith.com.au
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mneville@griffith.com.au
bsimpson@griffith.com.au
cstead@griffith.com.au
dzappacosta@griffith.com.au

MEMBERS OF THE PUBLIC CAN ADDRESS COUNCIL IN THE FOLLOWING WAYS

Council generally meets every second and fourth Tuesday of the month at 7.00 pm in the Council Chambers.

Addressing the Council on Business Paper matters

If there is a matter on the agenda you would like to discuss or address, you can contact Council prior to the Ordinary Meeting of Council and request permission to address Council in relation to the matter. Notice of this must be given by 12.00 noon of the day of the meeting. Any requests for detailed information regarding an item on the Council Business Paper must be submitted by 12.00 noon of the day of the meeting.

Notice of Motion via Councillor

You are able to lobby a Councillor to raise a Notice of Motion to have a matter considered by the Council at a future meeting.

Petition

A petition can be presented to the Council through a Councillor. If you would like to present a petition to an Ordinary Meeting of Council, please contact one of the Councillors to arrange.

Customer Request Management system

The Customer Request Management system (CRM) manages the processing of customer requests. Customer requests can be then easily responded to, allocated to responsible officers and checked. The system will automatically escalate requests that have not been actioned. To log a request, please contact Council's Customer Service Team on 02 6962 8100.

Direct correspondence to the General Manager

You can write directly to the General Manager about your issue or concern via letter or email. You can contact the General Manager at admin@griffith.nsw.gov.au or to: The General Manager, PO Box 485 Griffith NSW 2680.

REPORT AUTHORS AND AREAS OF RESPONSIBILITY

Senior Management Team

General Manager
Director Economic & Organisational Development
Public Officer/Right to Information Officer
Director Business, Cultural & Financial Services
Director Infrastructure and Operations
Director Sustainable Development
Director Utilities

Brett Stonestreet
Shireen Donaldson
Shireen Donaldson
Max Turner
Phil King
Phil Harding
Graham Gordon

Economic & Organisational Development

Governance Manager
Tourism Manager
HR & Risk Manager
Workforce Planning Manager
IT Manager
Information Manager
Information Management Administrator
Community Development Coordinator

Leanne Austin
Mirella Guidolin
Kylie Carusi
Nick DeMartin
Katherine Elliott
Joanne Savage
Wendy Vaccari
Peta Dummett

Business, Cultural & Financial Services

Finance Manager
Asset Management Coordinator
Library Manager
Griffith Regional Arts and Museum Manager
Leisure Services Manager

Vanessa Edwards
Andrew Keith
Shiron Kirkman
Raina Savage
Alan Anderson

Infrastructure & Operations

Works Manager - Maintenance
Works Manager - Construction
Parks & Gardens Manager
Airport Coordinator
Fleet & Depot Manager

Manjit Chugha
Shree Shrestha
Peter Craig
Bob Campbell
Steve Croxon

Sustainable Development

Planning & Environment Manager
Coordinator Landuse Planning and Compliance
Senior Development Assessment Planner
Principal Planner
Project Planner
Environment, Health & Sustainability Coordinator
Corporate Property Officer
Building Certification Coordinator
Acting Compliance Coordinator

Carel Potgieter
Vacant
Linden Favero
Pete Badenhorst
Nathan Beer
Fiona de Wit
Daphne Bruce
Anthea Crack
Chris O'Loughlin

Utilities

Engineering Design & Approvals Manager
Waste Operations Manager
Water & Wastewater Manager

Joe Rizzo
John Roser
Durgananda Chaudhary

**ORDINARY MEETING OF GRIFFITH CITY COUNCIL
TO BE HELD IN GRIFFITH CITY COUNCIL CHAMBERS ON
TUESDAY, 26 NOVEMBER 2019 AT 7:00 PM**

MEETING NOTICE

Notice is hereby given that an Ordinary Meeting of Council will be held in the Griffith City Council Chambers on **Tuesday, 26 November 2019**.

Persons in the gallery are advised that the proceedings of the meeting will be recorded for the purpose of ensuring the accuracy of the Minutes.

Griffith City Council now supplies broadcast and on-demand audio of Ordinary Meetings of Council which may be broadcast via local media and an audio version of the Council Meeting is available on the Council website which can be listened to on a mobile device or PC.

Persons attending a Council meeting consent to the possibility that their voice may be broadcast to the public. Audio of Council Meetings cannot be copied, recorded, reproduced, reused or transmitted without the prior written consent of the General Manager.

Under the Local Government Act 1993, no other recording is permitted without the authority of the Council or Committee. Recording includes a video camera and any electronic device capable of recording speech.

Members of the public may address Council in relation to the items listed in this Agenda by contacting Council on (02) 6962 8100 by 12.00 noon on the day of the meeting.

The agenda for the meeting is:

- 1 Council Prayer and Acknowledgment of Country
- 2 Apologies and Requests for Leave of Absence
- 3 Confirmation of Minutes
- 4 Business Arising
- 5 Declarations of Interest
- 6 Presentations
- 7 Mayoral Minutes
- 8 General Manager's Report

CL01 p19 Adoption of 2018/19 Annual Financial Statements & Auditors Report

CL02	p27	Code of Conduct Complaints - Annual Return (1 September 2018 to 31 August 2019)
CL03	p31	Amendment of Draft Housing Strategy after Exhibition Period
CL04	p45	Renewal of Licence Agreement - Areas 11 & 12 Dalton Park - Bernard Francis Newell
CL05	p51	In-Principle Support - Western Riverina Community School - Lot 1 Section 127 DP 758476 - Kookora Street Park
CL06	p57	First Quarter Performance Report 2019/20 - Budget Review and Operational Plan
9	Information Reports	
CL07	p65	Griffith City Council Annual Report 2018/19
CL08	p67	Investments at 31 July, 31 August and 30 September 2019
CL09	p73	Petition received 14 November 2019
10	Adoption of Committee Minutes	
	p74	Minutes of the Floodplain Management Committee Meeting held on 31 October 2019
	p83	Minutes of the Audit, Risk and Improvement Committee Meeting held on 31 October 2019
	p86	Minutes of the Traffic Committee Meeting held on 12 November 2019
11	Business with Notice – Rescission Motions	
12	Business with Notice – Other Motions	
	p90	Notice of Motion - Councillor Zappacosta
13	Outstanding Action Report	
	p94	Outstanding Action Report
14	Matters to be dealt with by Closed Council	
CC01	Licence over Lot 4 DP 1067284, Lake Wyangan	
	- personnel matters concerning particular individuals (other than councillors) 10A(2) (a)	
CC02	Code of Conduct Complaint 1	
	- alleged contraventions of any code of conduct requirements applicable under section 440 of the Local Government Act 1993 10A(2) (i)	

CC03

Code of Conduct Complaint 2

- alleged contraventions of any code of conduct requirements applicable under section 440 of the Local Government Act 1993 10A(2) (i)

CC04

Code of Conduct Complaint 3

- alleged contraventions of any code of conduct requirements applicable under section 440 of the Local Government Act 1993 10A(2) (i)

Brett Stonestreet

GENERAL MANAGER

**ORDINARY MEETING OF GRIFFITH CITY COUNCIL
HELD IN GRIFFITH CITY COUNCIL CHAMBERS ON
TUESDAY, 12 NOVEMBER 2019 COMMENCING AT 7:00 PM**

PRESENT

The Mayor, John Dal Broi in the Chair; Councillors, Glen Andreazza, Simon Croce, Doug Curran, Deb Longhurst, Eddy Mardon, Rina Mercuri, Anne Napoli, Mike Neville, Brian Simpson, Christine Stead and Dino Zappacosta

STAFF

General Manager, Brett Stonestreet, Director Economic & Organisational Development, Shireen Donaldson, Director Utilities, Graham Gordon, Director Sustainable Development, Phil Harding, Director Infrastructure & Operations, Phil King, Director Business, Cultural & Financial Services, Max Turner and Minute Taker, Leanne Austin

MEDIA

Calhan Behrendt, The Area News

1 COUNCIL PRAYER AND ACKNOWLEDGEMENT OF COUNTRY

The Meeting opened with Councillor Doug Curran reading the Council prayer and the Acknowledgement of Country.

2 APOLOGIES AND REQUESTS FOR LEAVE OF ABSENCE

No apologies or requests for leave of absence were received.

3 CONFIRMATION OF MINUTES

19/332

RESOLVED on the motion of Councillors Christine Stead and Dino Zappacosta that the minutes of the Ordinary Meeting of Council held in Griffith City Council Chambers on 22 October 2019, having first been circulated amongst all members of Council, be confirmed.

4 BUSINESS ARISING

Nil

5 DECLARATIONS OF INTEREST

Pecuniary Interests

Councillors making a pecuniary interest declaration are required to leave the meeting during consideration of the matter and not return until the matter is resolved.

Councillor Glen Andreazza

CL11 – Minutes of the Build More Dams Action Group Meeting held 14 August 2019

Reason – Councillor Glen Andreazza holds High and General Security water entitlements within Murrumbidgee Irrigation.

Councillor John Dal Broi

CL11 – Minutes of the Build More Dams Action Group Meeting held 14 August 2019

Reason – Clause 3.2 of the report. Councillor John Dal Broi's family company holds water entitlements.

Councillor Eddy Mardon

Outstanding Action Report – CL06 Volumetric Water Contributions Policy

Reason – Councillor Eddy Mardon was a director of companies that may seek damages.

Councillor Anne Napoli

MM01 – Water Reform

Reason – Councillor Anne Napoli holds a High Security water licence.

Councillor Anne Napoli

CL01 – DA126/2019 – Rural Supplies – Construction of New Office Building, Chemical and Fertiliser Storage Buildings with Associated Landscaping and Car Parking

Reason – A member of Councillor Anne Napoli's family is a Director of a company that has quoted for this project.

Councillor Anne Napoli

CL11 – Minutes of the Build More Dams Action Group Meeting held 14 August 2019

Reason – Re 3.2 Recommendation of the Minutes dated 14 August. Councillor Anne Napoli holds a High Security water licence.

Councillor Anne Napoli

Outstanding Action Report – Water Volumetric Contributions Policy

Reason – As a former developer Councillor Anne Napoli and her partner may have contributed water to the mentioned policy.

Councillor Dino Zappacosta

CL01 – DA126/2019 – Rural Supplies – Construction of New Office Building, Chemical and Fertiliser Storage Buildings with Associated Landscaping and Car Parking

Reason – Councillor Dino Zappacosta's family member is involved in the development.

Significant Non-Pecuniary Interests

There were no significant non-pecuniary interests declared.

Less Than Significant Non-Pecuniary Interests

Councillors making a less than significant non-pecuniary interest declaration may stay in the meeting and participate in the debate and vote on the matter.

Councillor Glen Andreazza

CL01 – DA126/2019 – Rural Supplies – Construction of New Office Building, Chemical and Fertiliser Storage Buildings with Associated Landscaping and Car Parking
Reason – Councillor Glen Andreazza is a client of the applicant and purchases their products and services on a regular basis and has also been contacted by the applicants in the matter.

Councillor Deb Longhurst

CL01 – DA126/2019 – Rural Supplies – Construction of New Office Building, Chemical and Fertiliser Storage Buildings with Associated Landscaping and Car Parking
Reason – Councillor Deb Longhurst has spoken to the proponents about this DA.

Councillor Deb Longhurst

CL04 – Transfer of Licence Agreement over Area 18 Dalton Park – Estate of the Late John William Clark to Karen Patten

Reason - Councillor Deb Longhurst is a member of Riding for Disabled organisation as a coach and a Committee member. John Clark was the caretaker and Karen Patten is the current caretaker.

Councillor Deb Longhurst

CL08 – Annual Closure of Administrative Office and Council Facilities Christmas and New Year 2019/20

Reason – Councillor Deb Longhurst is closely related to a Griffith City Council employee.

Councillor Rina Mercuri

CL01 – DA126/2019 – Rural Supplies – Construction of New Office Building, Chemical and Fertiliser Storage Buildings with Associated Landscaping and Car Parking

Reason – Councillor Rina Mercuri was contacted by one of the applicants.

Councillor Anne Napoli

CL08 – Annual Closure of Administrative Office and Council Facilities Christmas and New Year 2019/20

Reason – Councillor Anne Napoli is related to an employee of Griffith City Council.

Councillor Anne Napoli

CC02 – Nominations for Griffith Community Centre Committee Membership

Reason – One of the applicants is a member of a Board that Councillor Anne Napoli is also a member of.

Councillor Mike Neville

CL01 – DA126/2019 – Rural Supplies – Construction of New Office Building, Chemical and Fertiliser Storage Buildings with Associated Landscaping and Car Parking

Reason – Councillor Mike Neville has spoken to a director of the company that is the applicant for the DA subject to this clause.

Councillor Brian Simpson

CL01 – DA126/2019 – Rural Supplies – Construction of New Office Building, Chemical and Fertiliser Storage Buildings with Associated Landscaping and Car Parking

Reason – Councillor Brian Simpson received a call from one of the directors of the company with the development application. Councillor Brian Simpson understands all Councillors received a similar call.

Councillor Brian Simpson

CL11 – Minutes of the Build More Dams Action Group Meeting held 14 August 2019

Reason – Councillor Brian Simpson is a member of a neighbourhood irrigation association that holds General Security water entitlements and cannot sell any water held by the association. It is attached to the land.

Councillor Christine Stead

CL01 – DA126/2019 – Rural Supplies – Construction of New Office Building, Chemical and Fertiliser Storage Buildings with Associated Landscaping and Car Parking Reason

Reason – Councillor Christine Stead has spoken to a director of the company.

Councillor Zappacosta

CL11 – Minutes of the Build More Dams Action Group Meeting held 14 August 2019

Reason – CL 3.2 Own shares in Murrumbidgee Irrigation.

6 PRESENTATIONS

Nil

7 MAYORAL MINUTES

Councillor Anne Napoli left the meeting, having declared a pecuniary interest, the time being 7:13 pm.

MM01 WATER REFORM

19/333

RESOLVED on the motion of Councillors Dino Zappacosta and Glen Andreazza that Griffith City Council support the Deputy Premier Hon. John Barilaro MP in terms of seeking review of components of water management within the Murray Darling Basin.

Councillor Dino Zappacosta left the meeting, having declared a pecuniary interest, the time being 7:19 pm.

8 GENERAL MANAGER'S REPORT

CL01 DA 126/2019 - RURAL SUPPLIES - CONSTRUCTION OF A NEW OFFICE BUILDING, CHEMICAL AND FERTILISER STORAGE BUILDINGS, WITH ASSOCIATED LANDSCAPING AND CAR PARKING

19/334

RESOLVED on the motion of Councillors Glen Andreazza and Christine Stead that the meeting suspend standing orders.

Mr Mark Zanatta (proponent) addressed Council the time being 7:20 pm.

Mr Martin Ruggeri (applicant) addressed Council the time being 7:23 pm.

Mr Bill Lancaster addressed Council the time being 7:30 pm on behalf of the Sikh community.

19/335

RESOLVED on the motion of Councillors Doug Curran and Glen Andreazza that the meeting resume standing orders.

19/336

RESOLVED on the motion of Councillors Rina Mercuri and Glen Andreazza that:

- (a) Pursuant to the provisions of Section 4.16 of the Environmental Planning and Assessment Act, 1979 it is recommended Council grant consent to Development Application No. 126/2019 for a rural supplies business at Lot 102 DP 1249061, No 369 Thorne Road Griffith subject to conditions set out in Attachment "A" of the assessment report.
- (b) The application be delegated to the Director of Sustainable Development for preparation and issue of the notice of determination.

In accordance with the Local Government Action (section 375A - Recording of voting on planning matters) Council must record the Councillor's vote in relation to the matter.

For

Councillor John Dal Broi
Councillor Glen Andreazza
Councillor Simon Croce
Councillor Doug Curran
Councillor Deb Longhurst
Councillor Eddy Mardon
Councillor Rina Mercuri
Councillor Mike Neville
Councillor Brian Simpson
Councillor Christine Stead

Against

The division was declared PASSED by 10 votes to 0.

Councillor Anne Napoli returned to the meeting the time being 7:50 pm.

CL02 POLICY - EXTREME HEATWAVE – PUBLIC FACILITIES ACCESS

19/337

RESOLVED on the motion of Councillors Christine Stead and Glen Andreazza that:

- (a) Council place the policy "Extreme Heatwave – Public Facilities Access" on public exhibition for 28 days.
- (b) If any submissions are received, a further report be presented to Council.
- (c) Should no submissions be received, the policy be considered adopted by Council at the conclusion of the exhibition period.

Councillor Dino Zappacosta returned to the meeting the time being 7:51 pm.

CL03 ROADSIDE RESERVES VEGETATION MANAGEMENT POLICY

19/338

RESOLVED on the motion of Councillors Mike Neville and Deb Longhurst that:

- (a) Council place the draft Roadside Reserves Vegetation Management Policy on public exhibition for a minimum of 28 days.
- (b) If submissions are received, a further report be prepared for Council.
- (c) If no submissions are received, the draft Roadside Reserves Vegetation Management Policy be considered as adopted by Council as at the date of the conclusion of the advertised exhibition period.

CL04 TRANSFER OF LICENCE AGREEMENT OVER AREA 18 DALTON PARK - ESTATE OF THE LATE JOHN WILLIAM CLARK TO KAREN PATTEN

19/339

RESOLVED on the motion of Councillors Doug Curran and Christine Stead that:

- (a) Council approve the transfer of the licence agreement over Area 18 from the Estate of the Late John William Clark to Karen Patten.
- (b) Karen Patten pay all applicable costs and charges associated with the preparation of the transfer document together with Council's Administration Fee of \$450.
- (c) The licence fee continue to be charged in accordance with Council's adopted Revenue Policy, currently \$612 pa per Area for 2019/2020 financial year, in addition to rates and charges.
- (d) Council authorise the Mayor and General Manager to execute the transfer document on behalf of Council under the Common Seal if required.

CL05 PLAN OF MANAGEMENT - OLYMPIC PARK - LOT 5 SECTION 54 DP 758476

19/340

RESOLVED on the motion of Councillors Glen Andreazza and Mike Neville that:

- (a) Council refer the draft Plan of Management for part Reserve 85064, Lot 5 Section 54 DP 758476, Olympic Park to the Minister Administering the Crown Lands Management Act 2016 for approval.
- (b) Upon approval from the Minister Administering the Crown Lands Management Act 2016 Council amends the draft Plan of Management if required and places it on public exhibition as per Section 38 of the Local Government Act 1993
- (c) Council hold a public hearing to alter the categorisation of the land to General Community Use.
- (d) Native Title Manager advice will be provided prior to the final adoption of the Plan of Management, as is required.
- (e) A report will be presented to Council to adopt the final Plan of Management, on completion of the public exhibition period and public hearing requirement.

CL06 CBD RE-DEVELOPMENT LOAN - LOW COST LOAN INITIATIVE (LCLI) ROUND 2 APPLICATION

19/341

RESOLVED on the motion of Councillors Doug Curran and Rina Mercuri that Council endorse a loan application of \$10,000,000 from NSW Treasury Corp over 10 years with semi-annual repayment of interest and principle.

Shireen Donaldson left the meeting at 7:54 pm and returned at 7:54 pm.

CL07 AUSTRALIAN LOCAL GOVERNMENT WOMEN'S ASSOCIATION NEW SOUTH WALES ANNUAL CONFERENCE

19/342

RESOLVED on the motion of Councillors Brian Simpson and Dino Zappacosta that:

- (a) Council be represented at the 2020 Australian Local Government Women's Association NSW (ALGWA) Conference to be held at Shellharbour City Council 26-28 March 2020.
- (b) Councillors Napoli, Mercuri and Simpson and the General Manager (or his delegate(s)) attend the Conference.
- (c) Councillors expenses to attend the Conference be paid by Council in accordance with the Councillors Payment of Expenses and Provision of Facilities Policy.

**CL08 ANNUAL CLOSURE OF ADMINISTRATIVE OFFICE AND COUNCIL FACILITIES
CHRISTMAS AND NEW YEAR 2019/20**

19/343

RESOLVED on the motion of Councillors Glen Andreazza and Christine Stead that:

- (a) Council's Administrative Office at 1 Benerembah Street and Council Depot be closed for the period 1.00 pm Tuesday, 24 December 2019 to Wednesday, 1 January 2020.
- (b) Each of the nominated Council facilities be operating in accordance with the times detailed as follows:

Griffith Regional Art Gallery

The Griffith Regional Art Gallery will close on Friday 20 December 2019 and will re-open Monday 13 January 2020.

Griffith Regional Theatre

The Box Office will close on Friday 20 December 2019 and will re-open Monday 13 January 2020.

Griffith Regional Aquatic Leisure Centre

Tuesday 24 December	6am-6pm (Pool & Gym)
Wednesday 25 December – Christmas Day	CLOSED
Thursday 26 December – Boxing Day	CLOSED
Friday 27 December	6am-8pm (Normal Trading Hours)
Saturday 28 December	6am-6pm
Sunday 29 December	10am-5pm
Monday 30 December	8am-8pm (Normal Trading Hours)
Tuesday 31 December	6am-6pm (Pool & Gym)
Wednesday 1 January (Public Holiday)	CLOSED

As from Thursday, 2 January 2020 normal summer trading hours resume. Crèche will be open 9am-12pm over the school holidays excluding public holidays. Check with the Centre regarding Aerobics classes during the school holidays.

Pioneer Park Museum

Pioneer Park Museum will close on Friday 20 December 2019 and will re-open Monday 13 January 2020.

Griffith Sports Stadium

Closing Friday 20 December 2019 and will re-open Monday 6 January 2020.

Griffith Visitor Information Centre

Monday 23 December	10am–3pm
Tuesday 24 December	10am–3pm
Wednesday 25 December – Christmas Day	CLOSED
Thursday 26 December – Boxing Day	CLOSED
Friday 27 December	10am–3pm

Saturday 28 December	10am–3pm
Sunday 29 December	10am–3pm
Monday 30 December	10am–3pm
Tuesday 31 December	10am–3pm
Wednesday 1 January (Public Holiday)	CLOSED

Griffith City Library

Tuesday 24 December	9am–5pm
Wednesday 25 December – Christmas Day	CLOSED
Thursday 26 December – Boxing Day	CLOSED
Friday 27 December	CLOSED
Saturday 28 December	CLOSED
Sunday 29 December	CLOSED
Monday 30 December	9am–5pm
Tuesday 31 December	9am–5pm
Wednesday 1 January (Public Holiday)	CLOSED

Animal Pound

After hours emergencies for serious dog attacks and straying stock only contact the Ranger on 0408 210 196.

Griffith Livestock Marketing Centre

Closed Thursday 19 December 2019 and will re-open Thursday 9 January 2020.

Tharbogang Waste Management Centre

Wednesday 25 December – Christmas Day	CLOSED
Thursday 26 December – Boxing Day	CLOSED
Wednesday 1 January – New Year's Day	CLOSED

Yenda Waste Management Centre

Wednesday 25 December – Christmas Day	CLOSED
Thursday 26 December – Boxing Day	CLOSED
Wednesday 1 January – New Year's Day	CLOSED

9 INFORMATION REPORTS

CL09 COMMUNITY PARTICIPATION PLAN - REQUEST TO PLACE ON PUBLIC EXHIBITION

19/344

RESOLVED on the motion of Councillors Christine Stead and Glen Andreazza that:

- (a) Council place the Draft Community Participation Plan on public exhibition for 28 days.
- (b) If any submissions are received, a further report be prepared for Council for consideration.
- (c) If no submissions are received, the Community Participation Plan be considered as adopted by Council as at the date of the conclusion of the advertised exhibition period and the Plan forwarded to the NSW Department of Planning, Industry and Environment.

CL10 LOCAL GOVERNMENT NSW ANNUAL CONFERENCE 2019

19/345

RESOLVED on the motion of Councillors Christine Stead and Mike Neville that the report be noted by Council.

CL11 MINUTES OF THE BUILD MORE DAMS ACTION GROUP MEETING HELD ON 14 AUGUST 2019

19/346

RESOLVED on the motion of Councillors Glen Andreazza and Brian Simpson that item 3.2 State of Water and Water Infrastructure in the Murray Darling Basin be considered as a separate item.

Councillors John Dal Broi, Anne Napoli and Glen Andreazza left the meeting, having declared pecuniary interests, the time being 8:01 pm.

Councillor Doug Curran assumed the Chair.

19/347

RESOLVED on the motion of Councillors Dino Zappacosta and Simon Croce that the recommendations as presented in item 3.2 of the Minutes of the Build More Dams Action Group meeting held 14 August 2019 be endorsed and referred to RAMJO.

Councillors John Dal Broi, Anne Napoli and Glen Andreazza returned to the meeting the time being 8:09 pm. Councillor John Dal Broi resumed the Chair.

19/348

RESOLVED on the motion of Councillors Glen Andreazza and Mike Neville that the recommendations as detailed in the Minutes of the Build More Dams Action Group meeting held on 14 August 2019 be adopted.

CL12 MINUTES OF THE MEETING BETWEEN GRIFFITH COMMUNITY CENTRE COMMITTEE AND WESTERN RIVERINA COUNTRY UNIVERSITY CENTRE BOARD HELD ON 3 OCTOBER 2019

19/349

RESOLVED on the motion of Councillors Deb Longhurst and Simon Croce that the report be noted by Council.

CL13 MINUTES OF THE CHRISTMAS WORKING GROUP MEETINGS

19/350

RESOLVED on the motion of Councillors Glen Andreazza and Dino Zappacosta that the recommendations as detailed in the Minutes of the Christmas Working Group meetings held on 12 September 2019, 25 September 2019, 9 October 2019 and 30 October 2019 be adopted.

10 ADOPTION OF COMMITTEE MINUTES

Nil

11 BUSINESS WITH NOTICE – RESCISSION MOTIONS

Nil

12 BUSINESS WITH NOTICE – OTHER MOTIONS

NOTICE OF MOTION - COUNCILLOR NAPOLI

19/351

RESOLVED on the motion of Councillors Anne Napoli and Deb Longhurst that Council, will make available a free MLAK key to eligible people with a disability and their carers and that \$2,000 per year be made available from Community Grants to allow eligible people to take up this offer. If any funds are left over, that money to be rolled over and to be used for any other equipment or services that are identified by Council or the community specifically for Disability purposes.

Councillors Anne Napoli and Eddy Mardon left the meeting, having declared pecuniary interests, the time being 8:31 pm.

13 OUTSTANDING ACTION REPORT

19/352

RESOLVED on the motion of Councillors Doug Curran and Mike Neville that the report be noted.

Councillors Anne Napoli and Eddy Mardon returned to the meeting at 8:32 pm.

14 MATTERS TO BE DEALT WITH BY CLOSED COUNCIL

In accordance with the Local Government Act 1993 and the Local Government (General) Regulation 2005, in the opinion of the General Manager, the following business is of a kind as referred to in Section 10A(2) of the Act, and should be dealt with in a part of the meeting closed to the media and public.

Set out below is Section 10A(2) of the Local Government Act 1993 in relation to matters which can be dealt with in the closed part of a meeting.

The matters and information are the following:

- (a) personnel matters concerning particular individuals (other than Councillors)**
- (b) the personal hardship of any resident or ratepayer**
- (c) information that would, if disclosed, confer a commercial advantage on a person with whom the Council is conducting (or proposes to conduct) business**
- (d) commercial information of a confidential nature that would, if disclosed:**
 - (i) prejudice the commercial position of the person who supplied it, or**
 - (ii) confer a commercial advantage on a competitor of the Council, or**
 - (iii) reveal a trade secret**
- (e) information that would, if disclosed, prejudice the maintenance of law**
- (f) matters affecting the security of the Council, Councillors, Council staff or Council property**
- (g) advice concerning litigation, or advice that would otherwise be privileged from production in legal proceedings on the grounds of legal professional privilege**
- (h) information concerning the nature and location of a place or an item of Aboriginal significance on community land.**

(i) alleged contraventions of any code of conduct requirements applicable under section 440 of the Local Government Act 1993.

19/353

RESOLVED on the motion of Councillors Christine Stead and Doug Curran that:

- (a) Council resolve to go into closed council to consider business identified.
- (b) Pursuant to section 10A(1)-(3) of the Local Government Act 1993, the media and public be excluded from the meeting on the basis that the business to be considered is classified confidential under the provision of section [10A(2)] as outlined above.
- (c) The correspondence and reports relevant to the subject business be withheld from access to the media and public as required by section 11(2) of the Local Government Act 1993.

Council resolved that members of the press and public be excluded from the meeting during consideration of the items listed below, and that discussion of the report in open Council would be contrary to the public interest.

CC01 ACQUISITION OF LAND FOR GRIFFITH SOUTHERN INDUSTRIAL LINK ROAD - PART LOT 881 DP 751709 FROM WARBURN ESTATE PTY LTD & PART LOT 3040 DP 1196491 & PART LOT 5120 DP 1199029 FROM MURRUMBIDGEE IRRIGATION LTD

Reason: Council Business 10A(2)(c)

CC02 NOMINATIONS FOR GRIFFITH COMMUNITY CENTRE COMMITTEE MEMBERSHIP

Reason: Personnel Matters 10A(2)(a)

Council closed its meeting at 8:32 pm. The public and media left the Chamber.

REVERSION TO OPEN COUNCIL

19/354

RESOLVED on the motion of Councillors Mike Neville and Glen Andreazza that Open Council be resumed.

Open Council resumed at 8:42 pm.

Upon resuming open Council the Mayor reported that the following resolutions had been made in Closed Council:

MATTERS DEALT WITH IN CLOSED COUNCIL

CC01 ACQUISITION OF LAND FOR GRIFFITH SOUTHERN INDUSTRIAL LINK ROAD - PART LOT 881 DP 751709 FROM WARBURN ESTATE PTY LTD & PART LOT 3040 DP 1196491 & PART LOT 5120 DP 1199029 FROM MURRUMBIDGEE IRRIGATION LTD

19/355

RESOLVED on the motion of Councillors Doug Curran and Mike Neville that:

- (a) Council authorise the purchase of 7719m² (subject to survey) of part Lot 881 DP 751709 from Warburn Estate Pty Ltd at the price detailed in this report and enter into a Contract of Sale.

- (b) Council authorise the purchase of 3893m² (subject to survey) of part Lot 3040 DP 1196491 and part Lot 5120 DP 1199029 from Murrumbidgee Irrigation Ltd as detailed in this report and enter into a Contract of Sale.
- (c) Council pay all applicable costs and charges associated with the purchase of the land.
- (d) Council authorise the Mayor and General Manager to execute all documents on behalf of Council under the Common Seal.

CC02 NOMINATIONS FOR GRIFFITH COMMUNITY CENTRE COMMITTEE MEMBERSHIP

19/356

RESOLVED on the motion of Councillors Christine Stead and Doug Curran that:

- (a) Council appoint Jenna Thomas and Jennifer Chapman as members of the Griffith Community Centre Committee.
- (b) Council appoint Oumi Karenga-Hewitt as an alternate member.
- (c) The Terms of Reference be altered to make provision for an alternate community representative.

There being no further business the meeting terminated at 8:45 pm.

Confirmed:

CHAIRPERSON

CLAUSE	CL01
TITLE	Adoption of 2018/19 Annual Financial Statements & Auditors Report
FROM	Max Turner, Director Business, Cultural and Financial Services
TRIM REF	19/84505

SUMMARY

Council is required to present its audited financial reports, together with the auditor's reports in accordance with Section 419 of the Local Government Act, 1993. Council's external auditor, Ms Danielle MacKenzie from Crowe Australasia (Albury office) will be in attendance at the Ordinary Council Meeting to be held on Tuesday, 26 November 2019 to provide a brief overview of the final 2018/19 year results.

The Audit Office of NSW has the primary audit sign off responsibility for NSW Local Government authorities with the conduct of the Griffith City Council audit being contracted to Crowe Australasia, which is an arrangement that will continue for the next two (2) years (with an option for a further two (2) years) as a contractor to the Audit Office. The 2018/19 audit was completed and lodged within the statutory time frame and whilst there were no major issues of concern with an unqualified audit result being achieved there are some minor areas that staff will look to review and strive to improve in order to achieve the best possible outcomes on completing future year ends as smoothly and efficiently as possible.

Councillors have had a workshop presentation on Tuesday, 29 October 2019 on the draft results and this report seeks formal adoption of these results which are substantially unchanged from the results presented at workshop.

RECOMMENDATION

- (a) Council adopt the 2018/19 Annual Financial Reports and associated Auditor's Reports.**
- (b) Council express its appreciation to Ms Danielle MacKenzie (Associate Partner at Crowe Australasia), Crowe staff and Council staff involved in the preparation of the Reports.**
- (c) Council resolve to transfer the following amounts to the nominated Reserves:**
 - i. \$970K to the Waste Fund Reserve, this being the surplus generated by that fund after meeting all operational and capital costs for the 2018/19 year.**
 - ii. \$50K to a new SVPCHG Sinking Fund Reserve, this being the balance of contributions received from St Vincent's Private Community Hospital Griffith for future capital maintenance of the facility, and**
 - iii. Transfer \$482K to the Lake Wyangan Redevelopment Reserve to assist in funding the Lake Upgrade with the funds being the net surplus made from water trading in 2018/19.**

REPORT

Council's Annual Financial Reports are made up of the following reports:

- a) General Purpose Financial Reports
- b) Special Purpose Financial Reports
- c) Special Schedules

The Financial Reports presented have been audited and comply with the following:

- a) The Local Government Act, 1993 and the Regulations made thereunder,
- b) Australian Accounting Standards and professional pronouncements, and
- c) The Local Government Code of Accounting Practice and Financial Reporting

The Financial Reports were received by the Office of Local Government prior to the statutory deadline of 31 October 2019.

A copy of the full 2018/19 Annual Financial Statements has been provided to Councillors under separate cover.

General Purpose Financial Reports

The Financial Reports provided to Council are a Consolidated Report incorporating the Ordinary, Waste, Water and Sewerage Funds.

Council has 100% ownership and control of Griffith Health Facilities Limited which is a company established for the primary purpose of raising community funds which are to be utilised for the planning, design, construction and ongoing capital maintenance of the Griffith Community Private Hospital. The results of this entity have been consolidated into Council's Financial Statements and are disclosed in Note 15(a).

Council's ownership interest in the Western Riverina Library (a joint venture) is disclosed in Note 15(b) and share of assets and profit/(loss) are consolidated into Council's Financial Statements.

Special Purpose Financial Reports

The special purpose financial reports provide a detailed break-up of the Water and Sewerage Funds, which are business units of Council. The Special Purpose Financial Reports have been drawn up in accordance with the following:

- Local Government Code of Accounting Practice and Financial Reporting
- Applicable Australian Accounting Standards
- NSW Government Policy Statement "Application of National Competition Policy to Local Government"
- Office of Local Government guidelines "Pricing and Costing for Council Businesses: A Guide to Competitive Neutrality"
- The Local Government Act, 1993 and Regulations
- The NSW Office of Water Best-Practice Management of Water and Sewerage Guidelines.

Special Schedules

The Special Schedules have not been audited by Council's external auditor.

Council has met its National Competition Policy (NCP) requirements as can be seen in the Special Purpose Financial Reports and Special Schedules.

SUMMARY OF FINANCIAL POSITION

1. Operating Result

An operating surplus of \$4.26M before capital amounts was recorded in the 2018/19 financial year. This was made up of the following results per fund:

Water	\$2.257M
Sewer	\$0.923M
Ordinary	\$1.075M (includes Waste Services)
<u>Total</u>	<u>\$4.255M</u>

This result compares to the original forecast budget surplus of \$2.067M that was adopted in the Operational Plan for 2018/19 with significant factors being:

- Increase in both water consumption and trading in the past year, and
- Better than forecast results from returns on Investments.

These results remain highly satisfactory. Council has been achieving year-on-year operating surpluses across all funds for the past several years and this should continue into the future albeit with the additional extensive borrowings forecast to be undertaken across the next few years there will be increased pressure on operating results as well as cash flow generation and Council will need to retain strong control on other areas of expenditure to maintain satisfactory financial performances.

Council achieved operating surpluses in each of the Water, Sewer and Waste Funds in 2018/19 and recorded a modest deficit in the General Fund.

It is important for Council to build on its unrestricted and internally restricted cash reserves into the future which will provide the means to assist in covering the maintenance and replacement of its assets and infrastructure into the future. Careful consideration needs to be made on which capital projects are funded in Council's Ordinary Fund each year as this is a key factor, along with the annual operational spend that places a significant strain on Council's ability to generate cash reserves on an ongoing basis.

Sustained and continuing operating surpluses will be required if Council wants to remain financially sustainable in the future and build on its reserves and ultimately meet its long term responsibilities and service obligations to the community.

The following brief summaries of the key financial statements should be noted:

Income variations which contributed to the 2018/19 net result included:

- Rates of \$16.245M increased by \$526K from 2017/18
- Annual charges of \$15.458M increased by \$585K from 2017/18
- User fees & charges of \$17.299M increased by \$484K from 2017/18
- Interest & investment revenue of \$1.869M increased by \$409K from 2017/18
- Operating grants and contributions of \$7.656M decreased by (\$1.22M) from 2017/18
- Capital Grants & Contributions of \$8.99M increased by \$5.24M from 2017/18

- Other revenues of \$2.88M increased by \$709K from 2017/18

A table summarising the Operating Revenues is provided as follows:

Income type	2018/19 Actual \$000'	Original 2018/19 Budget \$000'	2017/18 Actual \$000'
Rates & Annual Charges	\$32,000	\$30,613	\$30,894
User Charges & Fees	\$17,299	\$15,790	\$16,815
Interest received	\$1,869	\$1,235	\$1,460
Other Revenues	\$2,880	\$1,582	\$2,171
Grants & Cont. - Operating	\$7,656	\$6,985	\$8,878
Grants & Cont. - Capital	\$8,998	\$5,641	\$3,760
Profit from Asset Disposals	\$92	\$0	\$185
Total Revenues	\$70,794	\$61,846	\$64,163

Expenditure variations which contributed to the 2018/19 net result included:

- Employee costs of \$24.677M increased by \$1.638M from 2017/18
- Depreciation & Amortisation cost of \$12.917M increased by \$325K from 2017/18
- Borrowing costs of \$1.314M decreased by (\$78K) from 2017/18
- Materials & contracts costs of \$13.753M increased by \$1.069M from 2017/18
- Other Expenses of \$4.88M increased by \$783K from 2017/18

A table summarising the Operating Expenses is provided as follows:

Expense type	2018/19 Actual \$000'	Original 2018/19 Budget \$000'	2017/18 Actual \$000'
Employee costs	\$24,677	\$24,779	\$23,039
Materials & Contracts	\$13,753	\$12,190	\$12,684
Borrowing costs	\$1,314	\$1,358	\$1,392
Depreciation, Amortisation & Impairment	\$12,917	\$11,411	\$12,592
Other expenses	\$4,880	\$4,400	\$4,097
Net Share of Joint Ventures	\$0	\$0	\$0
Total Expenses	\$57,541	\$54,138	\$53,804

2. Borrowing Costs and Debt Servicing

Council took up \$2.2M of new loans relating to Collina Stormwater infrastructure in 2018/19.

On a cash flow basis, loan principal of \$1.131M was repaid during the year along with a further \$1.29M in interest charges paid on loan borrowings (\$1.357M in 2017/18).

Total loan liabilities at 30 June 2019 were \$19.6M (2017/18 - \$18.5M). This is predominantly to do with the loan for the new Water Reclamation Plant in the Sewer Fund of \$17.1M.

3. Cash on hand, Investments and Reserves

Council experienced an increase in Cash Assets and Investments for the 2018/19 financial year. Cash and Investments increased from \$45.419M at 30 Jun, 2018 to \$56.82M at 30 June 2019. The quantum of all reserves (prior to current transfers) is provided as follows:

<u>External Reserves</u>	2018/19	2017/18
Reserve Name	Closing Balance \$'000	Closing Balance \$'000
Developer Contributions - General	\$1,893	\$1,794
Developer Contributions - Water	\$4,098	\$3,003
Developer Contributions - Sewer	\$2,233	\$1,584
Specific Unexpended Grants	\$2,279	\$877
Specific Unexpended Grant - WRCUC	\$468	\$0
Specific Purpose Unexpended Loans	\$1,107	\$0
Water Supply Fund	\$20,723	\$16,176
Sewer Supply Fund	\$6,955	\$5,573
Stormwater Management	\$690	\$683
Griffith Community Private Hospital	\$51	\$1
Total External Restrictions	\$40,497	\$29,691
<u>Internal Reserves</u>		
Reserve Name	Closing Balance \$'000	Closing Balance \$'000
Employee Leave Entitlements	\$2,159	\$2,100
Plant & Equipment Replacement	\$1,080	\$1,050
Infrastructure Replacement	\$1,080	\$1,050
Waste Management/Quarry	\$4,366	\$4,246
Griffith Health Facilities Ltd	\$22	\$22
Roads	\$482	\$468
Major Projects (CBD)	\$1,640	\$1,016
Facilities	\$490	\$525
Parks & Gardens	\$214	\$240
S. McWilliam Beautification Reserve	\$100	\$0
Floodplain & Drainage Mitigation	\$540	\$525
Total Internal Restrictions	\$12,173	\$11,242
<u>Unrestricted Cash Available</u>		
Reserve Name	Closing Balance \$'000	Closing Balance \$'000
Unrestricted Cash Available	\$4,150	\$4,486
Total Unrestricted Cash	\$4,150	\$4,486
Total Reserves at year end	\$56,820	\$45,419

Movements in Cash Reserves are summarised as follows:

- Externally restricted Cash Reserves increased by \$10.8M, from \$29.69M at 30 June 2018 to \$40.5M at 30 June 2019.
- Internally restricted Cash Reserves increased by \$0.931M from \$11.24M at 30 June 2018 to \$12.17M at 30 June 2019.
- There was also a further \$4.15M in unrestricted funds at 30 June 2019, a decrease of (\$0.336M) from 30 June 2018, this also includes the additional FAG instalments from 2019/20 which was again forward funded.

It is recommended that the following further transfers to reserves be made as a result of adopting this report:

- a) Transfer \$970K to the Waste Fund, this being the surplus generated by that fund after meeting all operational and capital costs for the 2018/19 year.
- b) Transfer \$50K to a new SVPCHG Sinking Fund, this being the annual contribution received from St Vincent's Private Community Hospital Griffith for future capital maintenance of the facility, and
- c) Transfer \$482K to the Lake Wyangan Redevelopment Reserve, this being the balance of funds remaining from the additional temporary water trading undertaken in 2018/19 to support the environmental projects required to redevelop Lake Wyangan.

It will be important to continue to build up cash reserves for future replacement of Plant and Equipment, Capital Maintenance of Buildings, Parks & Reserves, Facilities, Waste/Quarry operations, and Roads, which will only be achieved by preparing and meeting disciplined and affordable budgets within each of the funds of Council, in particular the General Fund into the future.

Overall, the level of cash reserves, notably Internal and Unrestricted Cash has generally improved over the past four (4) years however with the number of large scale projects being delivered in the next 1-5 years it will be challenging to achieve a similar result across that timeframe going forward and it will be important to closely monitor discretionary expenditure year on year.

4. Provisions

Council's current provisions increased in the 2018/19 financial year by \$653K to \$6.794M at 30 June 2019.

Council's non-current provisions increased in the 2018/19 year by \$66K to \$269K at 30 June 2019.

The largest component of provisions relates to employee leave entitlements and overall, Council is managing its employee leave entitlements well and with an increased emphasis on staff taking leave before it accrues too significantly.

5. Performance Ratios

- (a) **Operating Performance Ratio** - This ratio measures Council's achievement in containing operating expenditure within operating revenue. Council has achieved another excellent operating result with a positive performance recorded in at least each of the past 5 financial years. The operating performance ratio decreased to 6.75% (2018: 10.65%) due to the decrease in grants and contributions income provided for operating purposes and increase in employee benefits and materials and contracts expenses.
- (b) **Own Source Operating Revenue Ratio** - This ratio measures fiscal flexibility. It is the degree of reliance on external funding sources such as operating grants & contributions. Council's own source revenues were 76.02% at 30 June 2019 and are comfortably above the minimum 60% benchmark. Council has a healthy rating base that is supporting a strong ratio for own source revenue.
- (c) **Unrestricted Current Ratio** - This ratio assesses the adequacy of working capital and the ability to satisfy obligations in the short term for the unrestricted activities of Council. Council's Unrestricted Current Ratio has been on a positive trend over the last 5 years in particular. Council is aiming to increase this ratio further to above 3.00 in the longer term, however the ratio 2.69x is comfortably in excess of the minimum 1.50x benchmark ratio.

- (d) **Debt Service Ratio Cover** - This ratio measures the availability of operating cash to service debt including interest, principal and lease payments. Council's ratio at 7.53x is comfortably above the benchmark minimum of 2.0x.
- (e) **Rates, Annual Charges, Interest & Extra Charges Outstanding Percentage** - This ratio is to assess the impact of uncollected rates and annual charges on Council's liquidity and the adequacy of recovery efforts. This ratio is impacted by the timing of Council's 3rd Trimester Water/Sewer billing which is billed in June annually but is collectible in July. The Ratio at 6.46% is comfortably within the 10% benchmark. The rates and annual charges outstanding percentage has remained consistent for the last three years, which is a reflection of sound debt recovery procedures at the Council.
- (f) **Cash Expense Cover Ratio** - This liquidity ratio indicates the number of months a Council can continue paying for its immediate expenses without additional cash inflow. Council's Cash Expense Cover Ratio at 11.42 months remains in a very healthy position with the coverage over three times the minimum benchmark of three (3) months.

Council has achieved a strong operating result for the 2018/19 financial year with each of the General (incl. Waste), Water and Sewer funds recording healthy surpluses however the Waste Fund provided all of the surplus for the combined fund and management will need to carefully monitor the ongoing expenditure in the General Fund to ensure it strives to maintain balanced results in future years. Council will need to continue with its disciplined approach to short, medium and long term budgets in order to achieve ongoing operating surpluses and generate cash that can be placed under reserve whilst striving to maintain an acceptable level of service to the community.

Council has an ambitious capital works program over the next 10 years and this will be a challenge to manage however, with continued commitment and diligence in actively managing the organisation's performance, Council is in a strong position to achieve this program in the years ahead.

Finally, I would like to extend my thanks and appreciation to the management and staff at Council, in particular the Finance, Revenue Services and Asset Management staff, who have worked diligently on preparing the financial information and reports in order to have them completed accurately and lodged on time.

OPTIONS

No other options to note, as it is a requirement for Council to adopt the audited annual financial accounts when presented.

POLICY IMPLICATIONS

Not Applicable

FINANCIAL IMPLICATIONS

These results maintain Council's "Fit for the Future" status and continues a strong financial performance built up over the past several years.

LEGAL/STATUTORY IMPLICATIONS

In accordance with Section 419 of the Local Government Act, 1993.

419 Presentation of Council's financial reports

- a) A Council must present its audited financial reports, together with the auditor's reports, at a meeting of the Council held on the date fixed for the meeting.
- b) The Council's auditor may attend the meeting at which the financial reports are presented.
- c) A Council's auditor who carries out the functions of the auditor under an appointment by the Auditor-General must attend the meeting at which the financial reports are presented if the Council gives not less than seven (7) days' notice in writing that it requires the auditor to do so.

ENVIRONMENTAL IMPLICATIONS

Not Applicable

COMMUNITY IMPLICATIONS

Not Applicable

LINK TO STRATEGIC PLAN

This item links to Council's Strategic Plan item 3.2 Ensure Council's financial sustainability through effective financial management that is transparent and accountable.

CONSULTATION

Senior Management Team

Finance Manager

Council's External Auditor – Ms Danielle MacKenzie (Crowe Australasia)

ATTACHMENTS

Nil

CLAUSE	CL02
TITLE	Code of Conduct Complaints - Annual Return (1 September 2018 to 31 August 2019)
FROM	Shireen Donaldson, Director Economic & Organisational Development
TRIM REF	19/62410

SUMMARY

Under the Model Code of Conduct framework, the Complaints Coordinator must report on a range of Code of Conduct complaints statistics to Council and to the Office of Local Government (OLG) each year.

Specifically, Council must identify the total number of complaints received and dealt with in the OLG nominated reporting period (1 September 2018 to 31 August 2019) about Councillors and the General Manager under the Code of Conduct and of these, how many instances a Conduct Reviewer or Panel was engaged to resolve a Code of Conduct complaint either by Preliminary Assessment or further Investigation. Statistics must then be collected on the methods of resolution of the complaint. The Office of Local Government also requires Council to provide costings of dealing with Code of Conduct Complaints made about Councillors and the General Manager.

The Office of Local Government supplies the requisite Data Collection Form which is due no later than the 31 December 2019. The OLG has requested that Council return this report by 30 November 2019 so as to enable the compilation of the Time Series Data Publication by the Office of Local Government. The report will be returned to the OLG on 27 November following the Council Meeting of 26 November.

RECOMMENDATION

Council note the Code of Conduct Complaints Report for the period between 1 September 2018 - 31 August 2019.

REPORT

Council adopted the revised Office of Local Government Model Code of Conduct in February 2019. As required by the Administration Procedures, Council maintains a Register of Code of Conduct Complaints. The Register is used to provide statistical data to the Office of Local Government regarding the number of Code of Conduct Complaints received about Councillors and the General Manager and how these were resolved. Any other types of Code of Conduct complaints received in the period are not reportable to the Office of Local Government.

The Procedures for the Administration of the Code of Conduct provide instruction on the methods of resolution for Code of Conduct Complaints. These instructions are specific for the Mayor, General Manager and Council appointed Conduct Reviewers who are responsible for dealing with complaints.

Under the Model Code of Conduct, Council is not required to provide specific details on each Code of Conduct complaint nor present reports to Council on individual matters unless the matter has progressed to an investigation stage and a final investigation report is to be presented to Council pursuant to Part 11 of the Procedures for the Administration of the Model Code of Conduct for Local Councils in NSW (the Procedures).

At the conclusion of the Reporting Period 1 September 2018- 31 August 2019:

- 5 Code of Conduct complaints had been received by Council about Councillors and the General Manager
- 12 Complaints were finalised in the Reporting Period (this includes complaints that were reported as not being finalised in previous reporting periods as well as any complaints received and finalised in the same reporting period).

In addition to statistical data relating to the status of Complaints, the Office of Local Government has instructed that Councils also report on the expenditure on staff time, Conduct Reviewers and Panels to administer Code of Conduct Complaints.

The total cost of administering Code of Conduct Complaints about Councillors and the General Manager at Griffith City Council was \$41,777 for the reporting period 1 September 2018 to 31 August 2019.

It should be noted that the costs published include actual costs for those matters that are either resolved or not yet finalised. It should also be noted that matters progressing from Preliminary Assessment to Investigation incur one cost for Preliminary Assessment and then an additional cost for Investigation.

OPTIONS

The report must be presented to the Office of Local Government before 30 November 2019 for reporting purposes.

POLICY IMPLICATIONS

(GC-CP-404) Code of Conduct Policy - Public Policy – Economic & Organisational Development

FINANCIAL IMPLICATIONS

Council maintains an annual budget allocation for Code of Conduct Reviews (for 2019/20, the budget allocation was set at \$1,000), hence this will require revision at quarterly review.

LEGAL/STATUTORY IMPLICATIONS

The Office of Local Government requires the Code of Conduct Complaints Report to be presented by 30 November 2019 for reporting purposes.

ENVIRONMENTAL IMPLICATIONS

Nil

COMMUNITY IMPLICATIONS

The Council has an obligation to the community to be open and transparent about operations of Council.

LINK TO STRATEGIC PLAN

This item links to Council's Strategic Plan item 1.1 Provide clear and transparent communication to the community.

CONSULTATION

Senior Management Team

ATTACHMENTS

(a) Annual Return [↗](#)

29

Model Code of Conduct Complaints Statistics Griffith City Council		
Number of Complaints		
1	a The total number of complaints received in the period about councillors and the General Manager (GM) under the code of conduct	5
	b The total number of complaints finalised in the period about councillors and the GM under the code of conduct	12
Overview of Complaints and Cost		
2	a The number of complaints finalised at the outset by alternative means by the GM or Mayor	0
	b The number of complaints referred to the Office of Local Government under a special complaints management arrangement	0
	c The number of code of conduct complaints referred to a conduct reviewer	5
	d The number of code of conduct complaints finalised at preliminary assessment by conduct reviewer	0
	e The number of code of conduct complaints referred back to GM or Mayor for resolution after preliminary assessment by conduct reviewer	0
	f The number of finalised code of conduct complaints investigated by a conduct reviewer	12
	g The number of finalised code of conduct complaints investigated by a conduct review committee	0
	h The number of finalised complaints investigated where there was found to be no breach	5
	i The number of finalised complaints investigated where there was found to be a breach	6
	j The number of complaints referred by the GM or Mayor to another agency or body such as the ICAC, the NSW Ombudsman, the Office or the Police	0
	k The number of complaints being investigated that are not yet finalised	3
	l The total cost of dealing with code of conduct complaints within the period made about councillors and the GM including staff costs	41,777
Preliminary Assessment Statistics		
3	The number of complaints determined by the conduct reviewer at the preliminary assessment stage by each of the following actions:	
	a To take no action	0
	b To resolve the complaint by alternative and appropriate strategies	0
	c To refer the matter back to the GM or the Mayor, for resolution by alternative and appropriate strategies	0
	d To refer the matter to another agency or body such as the ICAC, the NSW Ombudsman, the Office or the Police	0
	e To investigate the matter	5
	f To recommend that the complaints coordinator convene a conduct review committee to investigate the matter	0

Investigation Statistics	
4	The number of investigated complaints resulting in a determination that there was no breach , in which the following recommendations were made:
a	That the council revise its policies or procedures 0
b	That a person or persons undertake training or other education 0
5	The number of investigated complaints resulting in a determination that there was a breach in which the following recommendations were made:
a	That the council revise any of its policies or procedures 0
b	That the subject person undertake any training or other education relevant to the conduct giving rise to the breach 0
c	That the subject person be counselled for their conduct 0
d	That the subject person apologise to any person or organisation affected by the breach 0
e	That findings of inappropriate conduct be made public 0
f	In the case of a breach by the GM, that action be taken under the GM's contract for the breach 0
g	In the case of a breach by a councillor, that the councillor be formally censured for the breach under section 440G of the Local Government Act 1993 1
h	In the case of a breach by a councillor, that the matter be referred to the Office for further action 1
6	Matter referred or resolved after commencement of an investigation under clause 8.20 of the Procedures and clause 7.20 of the new Procedures 0
Categories of misconduct	
7	The number of investigated complaints resulting in a determination that there was a breach with respect to each of the following categories of conduct:
a	General conduct (Part 3) 4
b	Conflict of interest (FMCC Part 4) and Non-pecuniary conflict of interest (NMCC Part 5) 1
c	Personal benefit (FMCC Part 5 / NMCC Part 6) 5
d	Relationship between council officials (FMCC Part 6 / NMCC Part 7) 0
e	Access to information and resources (FMCC Part 7 / NMCC Part 8) 4
Outcome of determinations	
8	The number of investigated complaints resulting in a determination that there was a breach in which the council failed to adopt the conduct reviewers recommendation 0
9	The number of investigated complaints resulting in a determination that there was a breach in which the council's decision was overturned following a review by the Office 0

CLAUSE CL03

TITLE Amendment of Draft Housing Strategy after Exhibition Period

FROM Shireen Donaldson, Director Economic & Organisational Development
 Karly Sivewright, Economic Development Coordinator
 Kelly McNicol, Consultant Planner
 Phil Harding, Director Sustainable Development

TRIM REF 19/83211

SUMMARY

Grant funding from the Building Better Regions Fund enabled Council to commission a detailed analysis of the current state of housing availability in Griffith. This evidence-based study, undertaken by Dr Judith Stubbs, forms the basis of the Housing Strategy for Griffith and seeks methods of increasing access to diverse housing options for key target groups in the city experiencing housing stress.

There has been extensive consultation with Councillors, key Council staff and major community stakeholders in Griffith to inform the study with two consultation sessions held with Councillors and two sessions held with key community stakeholders. A further forum for the community was also held during the consultation period.

RECOMMENDATION

Council endorse the Draft Housing Strategy as prepared by Judith Stubbs & Associates with additional recommended amendments as per Attachment A (under separate cover).

REPORT

Following a 48 day exhibition period Council received 9 submissions as well as a submission from Council's Sustainable Development Department. Online submissions and written submissions have been attached. The table below addresses the main concerns of each submission providing recommendation for any necessary changes.

Submission 1		
Issue	Comment	Recommendation
Need to make clearer the difference between affordable housing and social housing.	Agreed, the Housing Strategy Background Paper discusses Social Housing options and issues but a definition at the start of Housing Strategy would be beneficial.	Council should further define in the Strategy what Affordable Housing is and the difference between Affordable and Social Housing.
The Floor space ratio could be less restrictive on areas or zones close to public amenities.	Council's Sustainable Development Department has provided the following comment "0.7:1 FSR is too low to support RFB's in this Precinct. The Central Griffith precinct presently contains several two storey residential buildings with 1, 2 and 3 bedroom units	Remove density controls in the DCP and do not replace with an FSR. Provide objectives for development to adhere to in the Central Griffith

	along Wakaden street which have been built to at least 1.0:1 FSR, meaning the floor area of the residential building is equal to the lot area. The use of a 0.7:1 FSR would have the effect of limiting the ability to locate higher density affordable housing in close proximity to the CBD. The Griffith Local Environmental Plan 2014 was drafted in 2013 to ensure stringent development controls such as FSR and Height Controls were not included to promote higher densities and innovative designs as long as all parking, private open space and site facilities are provided.”	Precinct, but do impose additional controls. Potentially restrict FSR for established single dwelling Precinct's such as Collina and Wyangan Precincts.
Shop top housing is more restrictive than need be.	Ensuring commercial ground floor space in Banna Venue is important for future precinct expansion. Only Banna Avenue and the north side of Yambil Street has been recommended as being limited to the B2 Zoning which will limit residential development to shop-top housing in this zone.	Added additional clarification with regards to shop top housing in Strategy 5
New Generation boarding houses could end up as social housing	Well designed and managed 'New Generation' Boarding Houses provide a significant opportunity for housing a range of smaller low and very low income households affordably in the local context, including as part of multi-tenure developments. Relevant case studies are provided in the Affordable Housing Case Studies Booklet that accompanies the Background Report.	This matter has been addressed in the Housing Strategy & Background Paper
Concentrating population growth in the CBD where commercial viability is also growing would mean there is a higher chance of “walk to work” culture and carless families.	Agreed, the Housing Strategy and incentives to develop in the CBD will hopefully have an impact.	This matter has been addressed in the Housing Strategy & Background Paper

Submission 2

Issue	Comment	Recommendation
Seniors need to be considered in the planning. Village Life and RSL care units are often full with wait lists. The idea of Yambil/Canal Streets	The Housing Strategy Background Discusses Seniors Housing in great detail throughout and Council's consultant has assessed Self-Contained Dwellings in Retirement Villages from page 58 of the paper.	This matter has been addressed in the Housing Strategy & Background Paper

becoming an area with Low Cost New Generation "Boarding houses/units". This would suit older people with low maintenance, small accommodation requirements.		
I don't think people of any age or sector would be interested in living in a development in Lake Wyangan. Infrastructure such as shop and post office has closed down. It's too far out of town and major employers are on the other side of Griffith.	The master plan for Lake Wyangan is presently being drafted by GHD and Council staff. As part of this exercise, a priority has been to include appropriate sites and controls to facilitate affordable housing. The draft lot layout of the precinct will prioritise lot sizes and controls which support affordable housing in strategic locations. Access for affordable housing lots to pedestrian linkages, commercial uses and open spaces will also be prioritised.	This matter has been addressed in the Housing Strategy & Background Paper
If we are to attract professionals we also need to be able to offer choice of housing.	The Housing Strategy and Background Paper has assessed a number of Case Studies and analysis and will be promoting the development of mixed developments.	We acknowledge that a mix of housing choice will be critical in the successful delivery of the Strategy.

Submission 3

Issue	Comment	Recommendation
Affordable Family and Executive homes shortage (60 TAFE, 30 MDBA, approximately 50 Education, 50 Health, Baiada growth and more). Approximately 250 new homes are required ASAP.	Council's consultant states in the Strategy "The pressure is clearly on rental stock, which is likely affected by the low growth in strata dwellings (in particular, flats and units) in the LGA over the past decade or two. It is likely that, by 2036, there will be at least 1,160 households in need of affordable housing in the LGA, 70% in rental stress and 30% in home purchase stress, with a likely need for 60% smaller dwellings suited to singles and couples, and 40% suited to families. On current trends, 50% of affordable dwellings would need to be for very low income households, 30% for low income households, and 20% for moderate income households. This is the basis of affordable housing targets, outlined later in the Strategy." Executive homes were not identified as a high priority for Griffith's housing needs at this time as they are not an	This matter has been addressed in the Housing Strategy & Background Paper

	affordable option. Standard residential lots are currently fulfilling this need which allows for executive development in new subdivisions such as Collina and Willandra Estates. Once more affordable housing options are developed residents experiencing housing stress (paying more than 30% of their income towards rent) will be able to move into dwellings more suited to their needs, vacating larger homes that would be suited to executives and high earning professionals.	
Low cost Family Homes 200 required - Lake Wyangan Council owned and paid for by water trade donated to Public Housing provider.	The master plan for Lake Wyangan is presently being drafted by Council. As part of this exercise, a priority has been to include appropriate sites and controls to facilitate affordable housing. The draft lot layout of the precinct will prioritise lot sizes and controls which support affordable housing in strategic locations. Access for affordable housing lots to pedestrian linkages, commercial uses and open spaces will also be prioritised. (Sustainable Development Department).	This matter has been addressed in the Housing Strategy & Background Paper
Lodge Precinct, convert CBD industrial land rezoned to allow 200 temporary "Quality transportable Lodges" to be managed by not for profit NGO for emergency crisis homelessness relief.	The Housing Strategy suggests rezoning of a number of areas in the CBD. However it would be also inappropriate to allow 200 temporary "Quality transportable Lodges" in the CBD. The re-zoning process could take up to 8 months so therefore this would not be an immediate solution. It would also be an expensive exercise for connectivity of services for a temporary development not to mention reduce the amenity and character of the CBD if not managed appropriately. New Generation Boarding houses in the CBD would certainly be a better fit.	This matter has been addressed in the Housing Strategy & Background Paper
Hostel, Boarding Houses etc. Homeless relief. The Housing problems are at crisis point detrimentally impairing our City's growth and worse still 2750 homeless people is a National Emergency.	The number of homeless people in Griffith LGA using homelessness duration data from the General Social Survey is 2,175 homeless people in any given year. This may represent repeat episodes of homelessness for some people, particularly those homeless in the short-term, so this may be better thought of as homeless 'incidents' in a given year. Considering duration data, a more accurate estimate would be between 81 and 161 people who are at risk of	This matter has been addressed in the Housing Strategy & Background Paper

	entering long-term homelessness in the LGA in any one year.	
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Submission 4

Issue	Comment	Recommendation
A more extensive explanation of social housing as both social and affordable housing can be accessed by the lower end of the market.	Agreed the Housing Strategy Background Paper discusses Social Housing options and issues but a definition at the start of Housing Strategy would be beneficial.	Further define in the Strategy what Affordable Housing is and the difference between Affordable and Social Housing
What are some examples of very low income households?	Examples are included in the Housing Strategy Background paper Section 4.10 "Key Worker Case Studies" and Section 4.11 "Centrelink Recipients Case Study" from page 82 to page 84.	This matter has been addressed in the Housing Strategy & Background Paper
In all strategies it is important to ensure that if there are multi storey dwellings the inclusion of the requirement to include an industrial lift for ease of access to the building for getting furniture etc. into the dwellings above ground level to prevent injury and potential liability for owners.	Lifts are generally installed in buildings over 3 stories to comply with exit distances set out in the Building Code of Australia. The lifts are expensive to install and maintain.	This matter is beyond the scope of the Housing Strategy
Strategy 17 b) - there should be no requirement for the Community Housing Provider to be limited to the inclusions listed. i.e. it should not be a requirement to have a portion as New Generation Boarding Houses.	Council will work together with Community Housing Providers to determine the best fit in accordance with predicted demand.	We acknowledge that a mix of housing choice will be critical in the successful delivery of the Strategy.
Strategy 22 b) Should read - Advocate for an increase in funding and support arrangements for social housing to meet the needs of very low income and special needs groups in the LGA.	Acknowledged additions	Amended

Submission 5		
Issue	Comment	Recommendation
The incredible demand for rental properties means that even more people, not just overseas workers and those at risk, are paying very high prices to rent properties. Basic, affordable rental accommodation is needed in our city.	Addressed in the Housing Strategy	This matter has been addressed in the Housing Strategy & Background Paper
We endorse the need for Griffith City Council to provide the strong intervention required, not only through the many facets of the planning system, but in the direct creation of affordable rental housing through partnerships on public land, the promotion of 'New Generation' Boarding Houses, additional private caravan parks with long term rental available/manufactured housing estates, the redevelopment of older public housing properties and advocating for more support from NSW Housing.	Comments acknowledged	This matter has been addressed in the Housing Strategy & Background Paper

Submission 6		
Issue	Comment	Recommendation
The concerns I have are around the 'residential' housing approvals number. I have been able to find that the consistently the approvals have been at a total annual average of 84 per year over a 10 year average. Beyond that if we start to bundle	Development Approvals will be addressed and monitored as per Strategy 23 page 28. Council will establish required administrative mechanisms to ensure proper monitoring, management and administration related to the Strategy, and any Affordable Housing Program resulting from this, including Annual reporting against KPIs etc.	This matter has been addressed in the Housing Strategy & Background Paper

these figures, we are not taking into consideration of changing market conditions and I do not agree that these should be factored in the 200 p.a. Approval Rates are not coinciding with Development Rates, and therefore there is a real risk on not being able to achieve the volume of construction required.		
The continual Solar Farm approvals in our region are creating issues with the housing market by displacing real accommodation requirements (companies are renting houses for high rates and long commitments for FIFO workers that are sometimes not even in the homes but they need to secure the volume for out of area workers.	This issue does not relate to the Housing Strategy. There will also be FIFO workers that require temporary accommodation and potentially New Generation Boarding Houses could help address this. Without FIFO workers new developments that drive our economy would not occur.	This matter is outside the scope of the Housing Strategy
Education and incentive (and medium to executive housing) is affecting tradesmen and businesses in the region relocating to the area to continue to support increasing levels of development.	This issue does not relate to the Housing Strategy, however the tradesmen would definitely benefit from the development of new affordable housing stock.	This matter is outside the scope of the Housing Strategy
Like many are concerned with how I believe this rail should be moved out of Griffith, it is not the impact of my business, but the sheer fact that development of residential is allowed to occur with no penalty or oversight of the rail yard restriction and ARDC terms to shunting.	Griffith City Council is in the process of addressing this issue. GCC is involved with the facilitation of WR Connect and the development of the freight hub in Wumbulgal.	This matter is outside the scope of the Housing Strategy

The lake – there is funding and a full time person and still nothing. This would be a highly desirable location for executive housing with boats etc. but we cannot seem to get anything done in this space except through more meetings time and smaller scale initiatives.	The master plan for Lake Wyangan is presently being drafted by Council. As part of this exercise, a priority has been to include appropriate sites and controls to facilitate affordable housing. The draft lot layout of the precinct will prioritise lot sizes and controls which support affordable housing in strategic locations. Access for affordable housing lots to pedestrian linkages, commercial uses and open spaces will also be prioritised. Executive homes were not identified as high priority for Griffith's housing needs at this time. On current trends, 50% of affordable dwellings would need to be for very low income households, 30% for low income households, and 20% for moderate income households. Executive Homes would be more suited to high income households.	This matter has been addressed in the Housing Strategy & Background Paper
Remaining tourism comments	The remaining comments relate to tourism and aren't relevant to the amendment of the Draft Housing Strategy	This matter is outside the scope of the Housing Strategy

Submission 7

Issue	Comment	Recommendation
On behalf of Wiradjuri living below the poverty line, Wiradjuri working and houseless, Wiradjuri on Newstart and Parent Next, Wiradjuri who's children are paying rent from their Family Tax A and B under AHO NSW Headlease and Private renters.	Noted	This matter has been addressed in the Housing Strategy & Background Paper
I am aware of the 1979 Housing Act, in 1979 my family was uprooted from Cowra and resettled in Albury under a promise of a better lifestyle. This did not happen.	Noted	This matter has been addressed in the Housing Strategy & Background Paper
We are looking at direct creation into Home ownership. New houses to be built on existing	Council will continue to advocate for an increase in funding for social housing and work with other departmental organisations to support developments	This matter has been addressed in the Housing Strategy &

properties.	that meet the needs of very low income and special needs groups in the LGA.	Background Paper
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Submission 8

Issue	Comment	Recommendation
I live in Bringagee Street and at the top end is small boarding rooms and if that the kind of cheap accommodation you want well a lot off the time its eye sore.	Well designed and managed 'New Generation' Boarding Houses provide a significant opportunity for housing a range of smaller low and very low income households affordably in the local context, including as part of multi-tenure developments. Relevant case studies are provided in the Affordable Housing Case Studies Booklet that accompanies this Background Report.	This matter has been addressed in the Housing Strategy & Background Paper
The Draft of 215 pages only lists the word Granny Flats once which is a secondary building on the same block as main house which can be built and rented out.	Granny flat is referred to in the LEP as a secondary dwelling. Secondary dwellings are permitted under LEP subject to DA approval depending on land zoning.	Council to Provide guidelines for Secondary Dwellings. Precincts around the CBD of Griffith contain large lots which would easily support secondary dwellings. Landowners may not know that their lot is appropriate for a secondary dwelling. An easily interpreted guide could be sent out with rates notices in particular areas which Council would support additional dwellings. A list of local suppliers of secondary dwellings could also be provided.
The cost of borrowing money at 4.2% puts renting to low income people out of the picture.	Council will continue to advocate for an increase in funding for social housing and work with other departmental organisations to support developments that meet the needs of very low income and special needs groups in the LGA.	This matter has been addressed in the Housing Strategy & Background Paper

Submission 9

Issue	Comment	Recommendation
Yenda Progress Association support the need for more residential blocks being developed in Yenda	Agreed	In Strategy 19 Council should add that we will advocate for affordable worker dwellings through partnerships with the

based on the demand for housing from the growing workforce required to sustain wineries and other agricultural service industries.		private sector and large employers in the surrounding Villages including Yenda.
Yenda Progress Association would appreciate any support Council can offer in kind, or in promoting the development of more residential land in Yenda.	Yenda and other villages will definitely be considered in Council's assessment of potential zones for affordable housing	Consider Villages including Yenda in the assessment of area for affordable development.

OPTIONS

Recommendations as discussed above and additional recommendations as per Council's Sustainable Development Department are summarised below.

Rationale for Strategy – 1.2

Council to further define what Affordable Housing is and the difference between Affordable and Social Housing.

Add: The Cost Benchmarks are generally in accordance with *SEPP (Affordable Rental Housing) 2009* which defines 'affordable housing' as:

"A household is taken to be a very low income household, low income household or moderate income household if the household:

- (a) has a gross income that is less than 120 per cent of the median household income for the time being for the Greater Sydney (Greater Capital City Statistical Area) (according to the Australian Bureau of Statistics) and pays no more than 30 per cent of that gross income in rent, or*
- (b) is eligible to occupy rental accommodation under the National Rental Affordability Scheme and pays no more rent than that which would be charged if the household were to occupy rental accommodation under that scheme."*

What is social housing? Social housing is housing that is provided to eligible households, with rents subsidised to ensure that households pay an affordable rent. Social housing is housing that is owned by the Department of Communities and Justice (public housing) as well as housing that is owned or managed by registered housing providers (community housing).

Strategy 1

Amend affordable purchase benchmarks. Using NAB's borrowing power calculator, the following maximum loans in each Benchmark category could be accomplished:

	Very-low Income	Low-income household	Moderate income
Max Salary	\$609/week	\$975/week	\$1462/week
Max Loan	\$102,000	\$256,000	\$400,000

This should not impact policies or initiatives to support affordable housing as rental income potential is a more realistic indicator to use.

Strategy 4

Several of the controls in the Griffith Residential DCP No. 21 (1999) have been varied through development applications (DA's) which have set precedent for future DA's over the years. This has included permitting development above the density controls in strategic areas, reducing the amount of private open space for unit development and allowing reduced landscaping areas.

- In principle agree with:
 - inserting affordable housing objectives in DCP;
 - removing open space requirements for upper floor dwellings in RFB's;
 - the reduction of parking requirements for affordable housing.
 - removing the requirements for designated lots.
- Do not agree with the use of FSR's below 1:1 to promote affordable housing at higher densities.

Recommendation

- Remove existing density controls in DCP No 21 and replace with suitable FSR's for each Precinct or exempt certain Precincts close to the CBD from Floor Space Ratio (FSR) controls through provisions in a new Development Control Plan and potentially amendments to the Local Environmental Plan.

Strategy 5

- Providing for a FSR of 1.5 or higher or exempting the Precinct from an FSR restriction in a new Development Control Plan and potentially amendments to the Local Environmental Plan.
- Do not use height restrictions.
- Require a minimum of 0.5 parking spaces for one bedroom units.
- As part of the review of the GLEP 2014, limit the B2 zoning to Banna Avenue and the north side of Yambil Street and limit residential development to shop-top housing in this zone. Also, re-zone the south side of Yambil Street to Canal Street and the north side of Olympic Street and Railways Street to B4 to promote RFB's.

Strategy 7 & 8

- Providing for a FSR of 1:1 or higher or exempting the Precinct from an FSR restriction in a new Development Control Plan and potentially amendments to the Local Environmental Plan.
- Refer to comments and alternative recommendations for Strategy 5 for parking and height control.
- Rezone the entire precinct to medium density residential to solidify the strategy to promote higher densities. This would be facilitated through the review of the GLEP 2014.

Strategy 9

- Providing for a Floor Space Ratio of 0.7:1 or higher or exempting the Precinct from an FSR restriction in a new Development Control Plan and potentially amendments to the Local Environmental Plan.
- Rezone the entire precinct to medium density residential to solidify the strategy to promote higher densities. This would be facilitated through the review of the GLEP 2014.
- Investigate the preparation of a Health and Knowledge Precinct Master Plan similar to that created in Wagga Wagga with the Department of Planning, Industry and Environmental and NSW Health.

Strategy 10

- Providing for a Floor Space Ratio of 0.5:1-0.7:1 in the Precinct in a new Development Control Plan and potentially amendments to the Local Environmental Plan.
- Increase the amount of multi-dwelling housing lots in new subdivisions to 25%. Presently, developers are required to designate a portion of lots within new developments in Collina for multi-dwelling housing. A maximum of 15% of the lots in a proposed development can be utilised for multi-dwelling housing. This target has historically been utilised in the Collina Precinct to ensure that buyers of single dwellings are aware of which lots are to be utilised for multi-dwelling housing and to ensure the area is retained for predominantly single dwellings. An increase in the amount of higher density housing in this area could be supported, but not to an intensive level, as there are a lack of community facilities, commercial areas and public transport options in the area.

Strategy 11

- Providing for a Floor Space Ratio of 0.5:1-0.7:1 in the Precinct in a new Development Control Plan and potentially amendments to the Local Environmental Plan.
- The master plan for Lake Wyangan is presently being drafted by GHD and Council staff. As part of this exercise, a priority has been to include appropriate sites and controls to facilitate affordable housing. The draft lot layout of the precinct will prioritise lot sizes and controls which support affordable housing in strategic locations. Access for affordable housing lots to pedestrian linkages, commercial uses and open spaces will also be prioritised.

Strategy 14

Generally support strategy, however, would recommend the removal of the recommendation to develop one demonstration project for affordable MHE's.

Strategy 19

Council will advocate for affordable worker dwellings through partnerships with the private sector and large employers in the surrounding Villages.

Strategy 22

- b) Should read - Advocate for an increase in funding and support arrangements for social housing to meet the needs of very low income and special needs groups in the LGA.

Additional Strategies to be added

Additional suggested strategies to be added as per Sustainable Development Departments response under section 2.7 Additional Strategies as Recommended by Griffith City Council;

Strategy 25

Currently, Council's Section 7.12 Contributions Plan requires the payment of 1% of the cost of construction of a development as a levy, including affordable housing. Council will investigate implementing an exemption for affordable housing from paying Section 7.11 and 7.12 Contributions. The Plan could be amended to specifically exclude affordable housing Development Applications.

Strategy 26

SEPP (Affordable Rental Housing) 2009 covers the development of secondary dwellings as a form of affordable housing. The policy sets out lot requirements, maximum site coverage and floor area for complying developments. Presently secondary dwellings are required to pay Section 64 Contributions totalling around \$8,000. Secondary dwellings often contain a single bedroom and are only occupied by one person. The secondary dwelling occupies land previously used for gardens and lawns. Locating a secondary dwelling in the rear yard would decrease the amount of water required for landscaping. Council could advocate for the development of secondary developments by taking the following actions:

- a. Exempt Secondary Dwellings from paying Section 64 Contributions.
- b. Provide guidelines for Secondary Dwellings. Precincts around the CBD of Griffith contain large lots which would easily support secondary dwellings and even larger lots in Collina can adequately support secondary dwellings. Landowners may not be aware that their lot is appropriate for a secondary dwelling. An easily interpreted guide could be sent out with rates notices in particular areas which Council would support additional dwellings. A list of local suppliers of secondary dwellings could also be provided.

Strategy 27

Council will investigate the use of a medium density housing code (complying development) in Griffith. In some precincts close to the CBD, including **Wakaden North**, **Coolah** and **Central Griffith** (which have been recommended as being rezoned to medium density residential) the use of a complying development code for affordable or high density housing could be developed. This would provide surety to developers that if they meet certain development and design standards, their development would be approved in 14 days.

Strategy 28

Any existing Restriction as to User pursuant to Section 88B of the Conveyancing Act on the title of a lot in Griffith which restricts the construction of a single dwelling on the lot should not also restrict the construction of a secondary dwelling. The meaning of a dwelling on these 88B Instruments should be construed as meaning a primary dwelling which would not restrict the construction of a secondary dwelling on the lot.

POLICY IMPLICATIONS

Implementation of strategies may be dependent on local planning instruments.

FINANCIAL IMPLICATIONS

Some strategies identify Council contributions be required to enable their undertaking.

LEGAL/STATUTORY IMPLICATIONS

Implementation of strategies may be dependent on local planning instruments.

ENVIRONMENTAL IMPLICATIONS

Not Applicable

COMMUNITY IMPLICATIONS

Community Consultation was paramount in the development of the strategies.

LINK TO STRATEGIC PLAN

This item links to Council's Strategic Plan item 4.1 Enable accessible diversity in housing choice.

CONSULTATION

Senior Management Team

ATTACHMENTS

- (a) Amended Draft Griffith Affordable Housing Strategy (under separate cover) ➡
- (b) Griffith Housing Strategy - Online Community Submissions 1-5 (Sub 1 - Nathan Beer, Sub 2 - Monica Beckman, Sub 3 - Griffith Business Chamber, Sub 4 - Linking Communities Network Ltd, Sub 5 - Soroptimist International Griffith Inc.) (under separate cover) ➡
- (c) Housing Strategy Submission 6 - Josh Nadzielski (under separate cover) ➡
- (d) Housing Strategy Submission 7 - Veronica Collins for Wiradjuri (under separate cover) ➡
- (e) Housing Strategy Submission 8 - Greg McCarten (under separate cover) ➡
- (f) Housing Strategy Submission 9 - Yenda Progress Association (under separate cover) ➡
- (g) Letter of Support - LAHC Griffith Housing Strategy submission (under separate cover) ➡
- (h) Letter of Support - NSW Government (under separate cover) ➡
- (i) Sustainable Development Response to Housing Strategy (under separate cover) ➡

CLAUSE CL04**TITLE Renewal of Licence Agreement - Areas 11 & 12 Dalton Park - Bernard Francis Newell****FROM Daphne Bruce, Corporate Property Officer****TRIM REF 19/88758**

SUMMARY

The licence agreement with Bernard Francis Newell over Areas 11 and 12 Dalton Park has expired as of the 30 September 2019. Mr Newell is requesting Council to renew the licence agreement for a further term.

RECOMMENDATION

- (a) Council enter into a licence agreement with Bernard Francis Newell over Areas 11 & 12 Dalton Park for a term of 5 years commencing 1 October 2019.**
- (b) Council advertise its intention to enter into a licence agreement with Bernard Francis Newell over Areas 11 & 12 Dalton Park (part Lot 562 DP 751743) for a period of 28 days. Should any submissions be received a report will be presented to Council for consideration.**
- (c) Should no submissions be received, Council will enter into the licence agreement with Bernard Francis Newell.**
- (d) Bernard Francis Newell pay all applicable costs and charges associated with the preparation of the licence agreement together with Council's Administration Fee of \$450.**
- (e) The licence agreement be charged in accordance with Council's adopted Revenue Policy, currently \$612 pa per Area for the 2019/2020 financial year, in addition to rates and charges.**
- (f) Council authorise the Mayor and General Manager to execute the licence agreement on behalf of Council under the Common Seal.**

REPORT

Bernard Francis Newell has held a licence over Areas 11 and 12 Dalton Park (part Lot 562 DP 751743) since purchasing the stables from the previous licensee in 2018. The term of the existing licence was transferred to Mr Newell on the 7 March 2018 and expired on the 30 September 2019.

Mr Newell is requesting Council to renew the licence agreement.

With the introduction of the Crown Land Management Act 2016 (CLM Act) on 1 July 2018, Council is now required to prepare a Plan of Management (PoM) for all reserves under their control. Until the adoption of a compliant PoM, Council can renew licences issued before 1 July 2018 for a term not exceeding five years (including options) if there are no additional permitted uses for the land.

Dalton Park, Crown reserve 83393 has the reserve purpose under the CLM Act of Racecourse and Public Recreation. Under the Local Government Act 1993 (LG Act) the reserve is classified as community land and is categorised as a sportsground.

Council is required to advertise its intention to enter into a licence agreement with Mr Newell.

A Native Title assessment was completed in accordance with the Native Title Manager Workbook, prepared for Native Title Managers under the CLM Act.

It is assessed that the issue of a new licence agreement to Bernard Francis Newell is consistent with the reserve purpose of Racecourse, and therefore satisfies requirements of Subdivision J.

J	Subdivision J deals with future acts done in good faith under or in accordance with a reservation, dedication, condition, permission or authority made on or before 23 December 1996 which require the land to be used for a particular purpose, or the future act otherwise had no greater an impact on native title than any act that could have been done that was under or in accordance with the reservation.
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OPTIONS

OPTION 1

As per the recommendation.

OPTION 2

Council may determine an alternate option but this is not preferred as Mr Newell purchased the stables from the previous owner and is now seeking to renew the licence agreement.

POLICY IMPLICATIONS

Dalton Park – Areas of Responsibility PG-CP-101

FINANCIAL IMPLICATIONS

The annual fee for private lease/licence of Areas at Dalton Park is \$612 pa per Area plus rates and charges. Council will also charge an Administration Fee of \$450. Mr Newell is responsible for all costs associated with the preparation of the licence agreement payable directly to Councils nominated legal representative. Mr Newell has continued to pay all rates and water charges.

On the commencement of the previous licence, Mr Newell commenced paying \$30 per week towards his annual fees. Clause 14.3 of the licence states '*The Licensee shall pay to the Licensor on the Commencement Date the Initial Rent and thereafter must pay on each Due Date, Rent in advance adjusted as provided in sub-clause 14.4 and 14.5*'.

Mr Newell has been advised the rent is to be paid in advance each year, on receipt of the Tax Invoice or he will be in default of the terms of the licence agreement. There is currently no outstanding fees and charges for Areas 11 and 12.

LEGAL/STATUTORY IMPLICATIONS

Crown Land Management Act 2016 – Section 3.22

Crown Land Management Regulation 2018 (NSW) – Part 7, Clause 70

Crown Land Management Act Amendment (Holdings) Regulation 2019 –Schedule 1 (3)

Local Government Act 1993 Section 46, 46A, 47 & 47A

Crown Land Management Fact Sheet – Transitional provisions for Council Crown land managers:

Table 1. Summary of all current transitional provisions. Earlier provisions retained	New provisions added
Licences Grant short term licences up to 12 months for prescribed purposes.	Renew licences issued before 1 July 2018 for a term not exceeding five years (including any options) if there are no additional permitted uses for the land. Grant new licences for a term not exceeding five years (including any options) if: a) there was a licence in force over the land immediately before 1 July 2018 b) there are no permitted uses for the land under the new licence that are additional to those that were permitted under the previous licence. Grant new licences for a term not exceeding five years (including any options) where: a) the licensee is an emergency services organisation as defined in <i>State Emergency and Rescue Management Act 1989</i> (see Table note 1) b) the Minister consents to granting the licence. Grant new licences for a term not exceeding five years (including any options) where: a) the licensee is a not-for-profit organisation or a community group b) the minister consents to granting the licence.

ENVIRONMENTAL IMPLICATIONS

All environmental implications were considered as part of the construction of a stable on the land. A Plan of Management will be prepared for Dalton Park and will further consider environmental factors.

COMMUNITY IMPLICATIONS

The community would expect Council to encourage recreational pursuits whilst receiving an income for the occupation of the land.

LINK TO STRATEGIC PLAN

This item links to Council's Strategic Plan item

CONSULTATION

Senior Management Team

ATTACHMENTS

(a)	Letter from Bernard Newell ↓	47
(b)	Council letter to Bernard Newell ↓	49
(c)	Plan - Areas 11 & 12 ↓	50

Attention Daphne

Bernard Newell

5/20 Wayeela st

Griffith 2680

29/10/2019

Dear Council Manager



I wish to renew my licence holding in Dalton Park ,
Remembrance Driveway Griffith lot numbers 11/12 .

Kind Regards

Bernard Newell

B Newell



23 October 2019

Mr Bernard Newell
5/20 Wayeela Street
GRIFFITH NSW 2680

Dear Mr Newell

RE: LICENCE AGREEMENT AREAS 11 & 12 DALTON PARK

I refer to our telephone conversation of today and advice that your licence agreement over Areas 11 & 12 Dalton Park had expired as of 30 September 2019.

As we discussed, it has also been brought to my attention that you have been paying your annual rental on a weekly basis. I refer you to the licence agreement and specifically Clause 14.3, *"The Licensee shall pay to the Licensor on the Commencement Date the Initial Rent and thereafter must pay on each Due Date, Rent in advance adjusted as provided in sub-clauses 14.4 and 14.5."* The rent is to be paid in advance each year, on receipt of the Tax Invoice or you will be in default of the terms of the licence agreement.

To renew the agreement will require a report being prepared for the next available Ordinary Meeting of Council for consideration to renew the agreement.

All legal fees associated with preparing the licence agreement is payable by the applicant direct to Council's nominated legal representative. Council will also invoice an Administration Fee of \$450. The current annual rental for private leases at Dalton Park is \$612 per Area per annum, plus rates and charges.

I will require your response in writing to proceed to seek approval to renew your licence agreement and acknowledgement of the terms of the licence agreement.

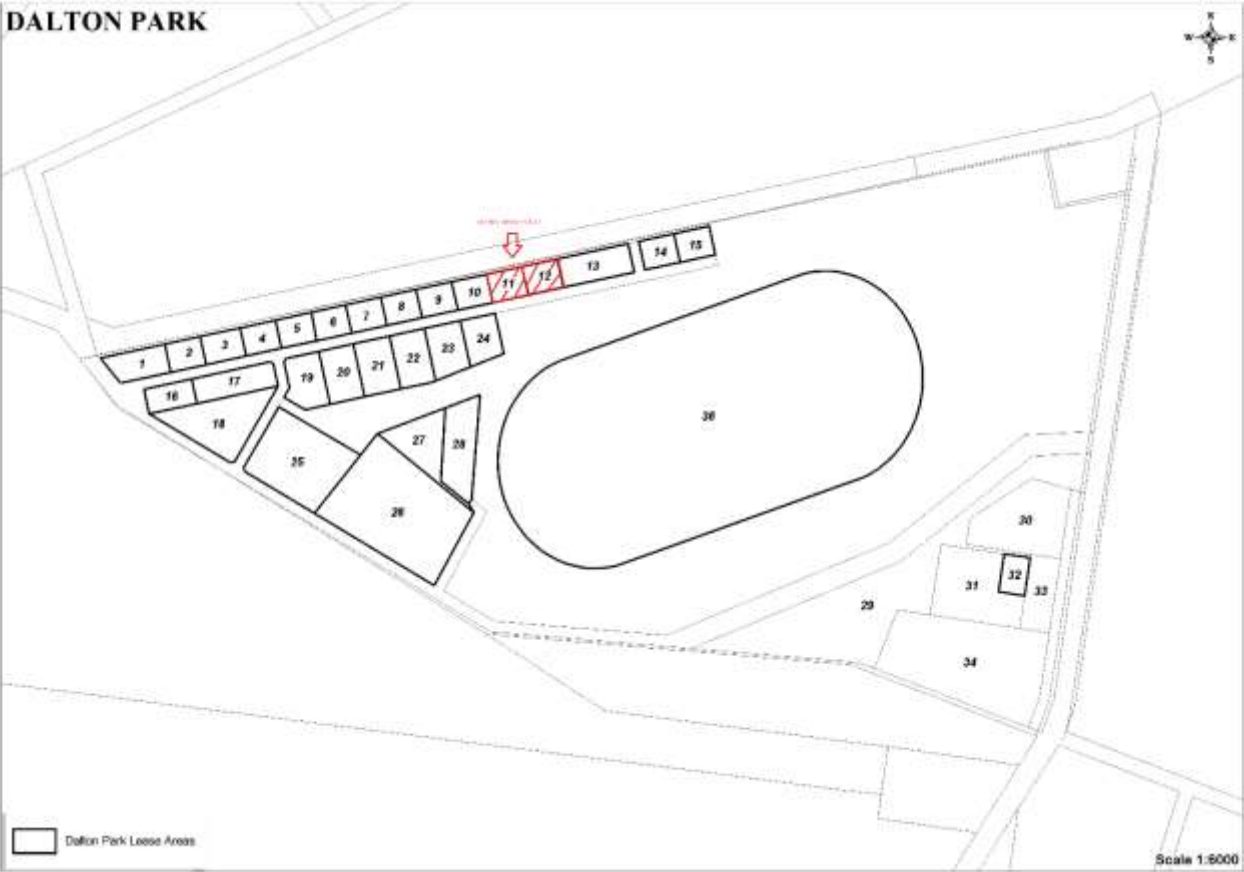
Should you require further information please contact me on (02) 6962 8134.

Yours sincerely

A handwritten signature in black ink, appearing to read 'D Bruce', is written over a horizontal line.

DAPHNE BRUCE
CORPORATE PROPERTY OFFICER

Griffith City Council, PO Box 485, Griffith NSW 2680, 1 Benerembah Street, Griffith NSW 2680
• Ph: 02 6962 8100 • Fax: 02 6962 7161
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CLAUSE **CL05**

TITLE **In-Principle Support - Western Riverina Community School - Lot 1 Section 127 DP 758476 - Kookora Street Park**

FROM **Daphne Bruce, Corporate Property Officer**

TRIM REF **19/92291**

SUMMARY

Western Riverina Community School (WRCS) is currently operating from the Western Riverina Community College in Hickey Street, Griffith. The school is open to students completing years 9 to 12.

The school currently has an enrolment of 25 students with a 70% attendance rate compared to those students attendance at mainstream school of 1-2 days per year.

The school is looking to expand, as the current enrolment was capped at 25 due to lack of room to accommodate the students at the college, which also caters for adult learning classes.

The board of the college has identified part Crown Reserve 81439, Lot 1 Section 127 DP 758476, Kookora Street Park, as a potential site for a new school and is seeking Council 'in-principle support' to the proposal.

RECOMMENDATION

- (a) Council provide 'in-principle' support to Western Riverina Community College to develop a school on Crown Reserve 81439, Lot 1 Section 127 DP 758476.**
- (b) Western Riverina Community College prepare a Draft Plan of Management for Crown Reserve 81439, Lot 1 Section 127 DP 758476.**
- (c) Western Riverina Community College pay for all costs associated with the preparation of the Draft Plan of Management for Crown Reserve 81439, Lot 1 Section 127 DP 758476.**
- (d) Council pay all costs associated with the advertising of the Draft Plan of Management and Public Hearing for Crown Reserve 81439, Lot 1 Section 127 DP 758476.**
- (e) The Mayor and General Manager be authorised to sign and seal all documents if so required.**

REPORT

The Western Riverina Community College (WRCC) in Hickey Street Griffith, provides accredited vocational courses with the aim of helping people increase their workplace skills and opportunities for employment.

The college expanded in 2018 opening the Western Riverina Community School (WRCS). The purpose of the school is to engage with disengaged youth to provide an education in an alternate environment to a mainstream school.

Initially with an enrolment of 20 students from years 9 to 12, some changes to the current facility accommodated a further 5 students. The school is now at capacity, with growing interest from the community, the Board of WRCC is seeking to expand and accommodate up to 60 students.

With increased interest and the facility having significant constraints to accommodate an expansion, the board identified part Crown Reserve 81439 (Lot 1 Section 127 DP 758476), Kookora Street Park, as a potential site. The organisation has funds to invest in buildings but those funds do not extend to the purchase of land.

Crown Reserve 81439 includes Kookora Street Park, Yarrabee Reserve Park, Willow Park, Venetian Park, I.O.O.F Park and City Park.

Kookora Street Park is vacant land and has no infrastructure on the land.

Part Crown Reserve 81439 (Lot 1 Section 127 DP 758476) has the reserve purpose of 'Public Park, public recreation and access' under the Crown Land Management Act 2016. Access was added to the reserve purpose as access to the adjoining Lot 3 Section 125 DP 758476, Aged Day Respite Centre, is through Kookora Street Park.

The preparation of a Plan of Management (PoM) is required to consider the amendment to the reserve purpose by the addition of 'Community Purposes', and under the Local Government Act 1993 the reserve is classified as 'Community Land' and categorised as 'Park'. The PoM will also seek to amend the categorisation to 'General Community Use'. The amendments will permit a school to be located on the reserve. The land is zoned B4, Mixed Use, with Educational Establishments permitted with consent.

The PoM will be prepared by WRCC at their cost for Lot 1 Section 127 DP 758476. WRCC is seeking Council support in payment of advertising the Draft PoM and cost of holding a public hearing, which is required to amend the categorisation of the reserve.

Councils are to complete PoM's for all Crown Reserves under their control by 30 June 2021.

OPTIONS

OPTION 1

As per the recommendation.

OPTION 2

Council may determine not to provide 'in-principle' support to WRCC to utilise Crown Reserve 81439 for the purpose of a school, and determine an alternate option.

POLICY IMPLICATIONS

Nil

FINANCIAL IMPLICATIONS

WRCC will undertake the preparation of a PoM for part Crown Reserve 81439 (Lot 1 Section 125 DP 758476) at their cost. Council has been requested to provide funding towards the advertising of the Draft Plan of Management and hold a Public Hearing to amend the categorisation of the reserve.

On approval of the Draft PoM by the Minister administering Crown Lands and Council, a lease will be prepared between Council and WRCC over the reserve. All costs associated in preparing a lease will be payable by WRCC.

LEGAL/STATUTORY IMPLICATIONS

Crown Land Management Act 2016

Division 3.4 Crown land managed by Councils

Division 3.6 Plans of management and other plans

Local Government Act 1993

36I Core objectives for management of community land categorised as general community use

47G Public hearings

ENVIRONMENTAL IMPLICATIONS

The Plan of Management will consider environmental implications. A Development Application may be required if the project proceeds and will consider environmental implications at the time.

COMMUNITY IMPLICATIONS

The community would expect Council to support a proposal to re-engage youth with education.

LINK TO STRATEGIC PLAN

This item links to Council's Strategic Plan item 7.2 Develop partnerships to build on quality education and training opportunities.

CONSULTATION

Senior Management Team

ATTACHMENTS

- | | | |
|-----|---|----|
| (a) | Plan - Kookora Street Park - part Crown Reserve 81439 ↓ | 54 |
| (b) | Letter from Western Riverina Community College ↓ | 55 |
| (c) | Photos of Kookora Street Park ↓ | 56 |





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Thursday 31 October 2019

Mr Brett Stonestreet
General Manager
Griffith City Council
PO Box 485
GRIFFITH NSW 2680

Dear Brett,

Re: Proposed Western Riverina Community School

I refer to Daphne Bruce letter of response dated 14 October 2019 advising of Council's requirement of letter to formerly proceed with action for consideration of Western Riverina Community College (WRCC) to develop a School on Crown land known as "Kookora Park".

WRCC intends to proceed with the proposal as previously supported by its Board and therefore: -

- I. WRCC formerly requests that Griffith City Council prepares a Report to Council resolving to provide 'in-Principle support' to the construction of a School on Lot 1, Section 127 DP 758476. The school is intended to accommodate students outside of mainstream schooling from Years 9 – 12 with a maximum of 60 students.
- II. WRCC will meet necessary costs and arrange for preparation of a Draft Plan of Management in accordance with the Crown Land Management Act (CLMA) 2016 and the Local Government Act (LGA)1993 and in consideration also –
 - a. Seek amendment to the initial Categorisation of 'Park' to 'General Community Use' in accordance with Section 36I of the LGA 1993 to meet the proposed use of 'School';
 - b. Seek to have an additional purpose of Reserve 81439 to include 'Community Purposes' in addition to existing purposes of 'Public Park', 'Public Recreation' and 'Access'.
- III. WRCC acknowledges that access to Griffith Aged Care Services located on the adjacent Lot 3, Section 125 DP 758476 will continue to be required.
- IV. WRCC seeks Griffith City Council's support in meeting costs of advertising the Draft Plan of Management and holding a Public Hearing in accordance with Section 47G of the LGA 1993?

Please confirm if WRCC is to provide any additional information in anticipation of obtaining Council's 'in-Principle support' to the proposal?

Yours faithfully,

David Martin
CEO
Western Riverina Community College



CLAUSE CL06**TITLE First Quarter Performance Report 2019/20 - Budget Review and Operational Plan****FROM Vanessa Edwards, Finance Manager****TRIM REF 19/90551**

SUMMARY

Council is required to review its Operational Plan within two months of the end of each quarter. Council must review both its financial position and the Operational Plan Actions (Performance Indicators) adopted for 2019/20 for the quarter ended 30 September 2019.

RECOMMENDATION

- (a) Council note the variations to the 2019/20 original budget for the quarter ended 30 September 2019 as presented in this report.**
- (b) The Financial Review for the quarter ended 30 September 2019 be adopted.**
- (c) Council adopt the 30 September 2019 Operational Plan Review advising the extent to which the Operational Plan Actions (Performance Indicators) have been achieved.**
- (d) Council endorse minor amendments to the Organisational Structure as per this report.**

REPORT

The Operational Plan is a statutory requirement under Section 405 of the Local Government Act 1993. It requires Council to provide information on the statement of objectives (Operational Plan Actions) and performance targets for each of its principal activities. Council is also required to review its income and expenditure each quarter under Division 3, Section 203 of the Local Government (General) Regulation 2005.

Each of these requirements will be dealt with as follows:

1) REVIEW OF THE OPERATIONAL PLAN ACTIONS (Performance Indicators)

Council staff have completed a review of the extent to which the Operational Plan Actions (Performance Indicators) have been achieved. This review is included as an attachment to this report, Attachment (g).

2) BUDGET REVIEW STATEMENTS AND REVISION OF ESTIMATES

The Financial Review document comprises:

- Report by the Responsible Accounting Officer at 30 September 2019.
- Income and Expense Budget Review Statement (Fund Level) at 30 September 2019.
- Income and Expense Budget Review Statement (Program Level) to 30 September 2019.

- Capital, Cash and Investments Budget Review Statement at 30 September 2019.
- Budget Review Contracts at 30 September 2019.
- Budget Review Consultancy, Legal & Vandalism Expenses at 30 September 2019.
- Budget Review Councillor Expenses at 30 September 2019.

REVISED OPERATING STATEMENT

The revised operating statement at 30 September 2019 currently shows an estimated deficit from operating activities before capital amounts of (\$399,753). The adopted Operational Plan for 2019/20 showed a surplus from operations before capital grants of \$2,916,388.

The variations requested by each manager are shown on the comparatives operating statement summary, and also on the individual program income and expenditure.

The overall review of the first three months reveals a number of operating budget variations as summarised below, compared to the original budget for 2019/20.

Fund	Original Budget	Variance F / (U)*	Amended Budget
Ordinary	(\$294,790)	(\$3,002,799)	(\$3,297,589)
Waste	\$1,211,912	\$104,155	\$1,316,067
Water	\$1,756,124	(\$246,463)	\$1,509,661
Sewer	\$243,142	(\$171,034)	\$72,108
Total	\$2,916,388	(\$3,316,141)	(\$399,753)

*Favourable / (Unfavourable)

ORDINARY FUND VARIATIONS

Operating revenues within the ordinary fund have decreased by **(\$2,583,501)** from the original budget projection.

The variations in **operating revenue** are summarised as follows:

- User Fees & Charges increased by **\$64,045**
- Operating Grants & Contributions decreased by **(\$2,649,966)** and
- Other Operating Revenues increased by **\$2,450**

Operating expenditure has increased by **\$419,298** from the original budget projection.

The variations in **operating expenditure** are highlighted as follows:

- Employee costs increased by **\$55,022**
- Materials & Contracts increased by **\$276,816**
- Other Operating Expenses increased by **\$87,460**

Management will strive to improve this funds' performance throughout the remainder of the financial year.

WASTE FUND VARIATIONS

Operating revenues within the waste fund have increased by **\$105,815** from the original budget projection.

The variations in **operating revenue** are summarised as follows:

- Rates & Annual Charges increased by **\$67,810**
- User Fees & Charges increased by **\$38,005**

Operating expenditure has increased by **\$1,660** from the original budget projection.

The variations in **operating expenditure** are highlighted as follows:

- Other Operating Expenses increased by **\$1,660**

WATER FUND VARIATIONS

Operating revenues within the water fund have increased by **\$30,000** from the original budget projection.

The variations in **operating revenue** are summarised as follows:

- User Fees & Charges increased by **\$30,000**

Operating expenditure has increased by **\$276,463** from the original budget projection.

The variations in **operating expenditure** are highlighted as follows:

- Employee costs increased by **\$3,785**
- Materials & Contracts increased by **\$205,029**
- Other Operating Expenses increased by **\$67,649**

SEWERAGE FUND VARIATIONS

Operating revenues within the sewer fund have not changed from the original budget projection.

Operating expenditure has increased by **\$171,034** from the original budget projection.

The variations in **operating expenditure** are highlighted as follows:

- Employee costs increased by **\$31,000**
- Materials & Contracts increased by **\$102,385**
- Other Operating Expenses increased by **\$67,649**

GRANTS & CONTRIBUTIONS FOR CAPITAL PURPOSES

Income from Grants and Contributions for capital purposes has increased by **\$911,449** from the original budget projection of **\$21,666,821** to total **\$22,578,270**.

CAPITAL EXPENDITURE

There is a projected increase overall of **\$7,603,183** on capital expenditure items from the September quarterly review. The original budget projected a capital spend of **\$40,932,455**.

Each fund is summarised as per the following:

- The Ordinary Fund increased capital expenditure by **\$5,606,333**
- The Waste Fund increased capital expenditure by **\$405,890**
- The Water Fund increased capital expenditure by **\$1,220,875**
- The Sewer Fund increased capital expenditure by **\$370,085**

The main reason for increases in capital spend is due to the carryover of incomplete projects from the 2018/19 financial year.

CASH FLOW STATEMENT ANALYSIS

There is an overall reduction in cash of **(\$10,083,547)** from the 30 June, 2019 figure. The original budgeted decrease in cash was **(\$88,672)**, therefore the net result of the September review is a decrease in cash of **(\$9,994,875)**. It is usual that some of the capital projects may not be completed or started during the financial year. As each quarterly review is completed, there will be adjustments to both the operating and capital expenditure that may improve the final cash balance at year end.

Outlined in the Cash Flow Statement, and summarised below, is the estimated unrestricted cash available at 30 June 2020.

Total Cash & Investment Funds at 30/6/19 (Actual)	\$56,820,000
Decrease due to 2019/20 Operational Plan	(\$88,672)
Decrease from September 2019/20 Quarterly Review	(\$9,994,875)
Closing Externally restricted cash balance at 30/6/20	\$37,864,858
Closing Internally restricted cash balance at 30/6/20	\$8,596,012
Available (Estimated) Unrestricted Cash at 30/6/20	\$275,583
Total Projected Cash & Investment Funds at 30/6/20	\$46,736,453

CONCLUSION

The results of the September 2019/20 Quarterly Review process has seen a total decrease in the surplus of approximately **(\$3.3M)**. The adjustments made have been reasonably conservative as this is the first quarter of the financial year and in many cases it is quite early to be certain of full year adjustments and they may only be due to timing differences. However, the actual year-to-date operating performance is tracking well ahead of budget and it is the intention of the Senior Management Team to strive to lock in as many savings as possible over the course of the year to improve the full year's budget.

ORGANISATIONAL STRUCTURE AMENDMENTS

Amendments to the Organisational Structure include (from 26/2/2019):

Previous Position	Type of Change	New Position		Reason for Change	Directorate
Lake Wyangan Project Officer, Reporting to Environment, Health & Sustainability Coordinator	Reporting	Reporting to Sustainable Development & Urban Design Manager		Modify to benefit operational needs of Directorate	Sustainable Development
Coordinator, Landuse Planning & Compliance, Reporting to Planning & Environment Manager	Position Title, Position Description and reporting line	Principal Strategic and Development Planner, Reporting to Director, Sustainable Development		Modify position to benefit operational needs of Directorate	Sustainable Development
Development Administrator	Position Title and Position Description	Sustainable Development Administrator		Modify position to benefit operational needs of Directorate	Sustainable Development
Technical Support Officer, Reporting to Planning & Environment Manager	Reporting	Reporting to Customer Service Coordinator		Modify position to benefit operational needs of Directorate	Sustainable Development
Planning & Environment Compliance Officer, Reporting to Coordinator Land Use Planning & Compliance	Reporting	Reporting to Compliance Coordinator		Centralise compliance enforcement activities and transfer the responsibilities to one direct report	Sustainable Development
Operations Administration Support Officer	FTE	FTE from 0.8 to 1.0		Modify position to benefit operational needs of Directorate	Sustainable Development
Drainage Diagram Officer	Temporary Position	Casual Term Appointment		Assist with drawing and updating of Drainage Diagrams for a 12 month term	Sustainable Development
Biosecurity Officer – Noxious Weeds	Position Title	Biosecurity Officer - Weeds		Meet requirements of Biosecurity Act	Infrastructure & Operations
Noxious Weeds Inspector – Spray Operator	Position Title and Position Description	Weeds Inspector – Vegetation Control		Meet requirements of Biosecurity Act and operation requirements.	Infrastructure & Operations
Senior Governance Officer	FTE	FTE from 1.0 to 0.6	Total FTE increase is 0.2	Modify position to benefit operational needs of Directorate	Economic & Organisational Development
Governance Administration Officer	FTE	FTE from 1.4 to 1.0		Modify position to benefit operational needs of Directorate	Economic & Organisational Development
Governance Officer	FTE	FTE from 1.0 to 2.0		Modify position to benefit operational needs of Directorate	Economic & Organisational Development

Previous Position	Type of Change	New Position	Reason for Change	Directorate
Marketing and Promotions Officer	Position Title and Position Description	Marketing and Promotions Coordinator	Modify position to align with other similar positions in department	Economic & Organisational Development
Marketing & Education Officer	Position Description and FTE	FTE from 0.8 to 1.0	Modify position to benefit operational needs of Directorate	Business, Cultural and Financial Services
Apprentice Journeyman Plumber (ATSI), Reporting to Team Leader Water & Wastewater	Reporting	Journeyman Plumber (Apprentice). Relocate ATSI component to Water & Waste Water Treatment Plants Section (Treatment Plant Operator (Apprentice ATSI))	Modify position to benefit operational needs of Directorate	Utilities
Mechanical Fitter (occupied position)	Position Title and Position Description	Mechanical Fitter/Relief Water & Wastewater Treatment Plant Operator	Modify position to benefit operational needs of Directorate	Utilities
Mechanical Fitter (vacant position)	Position Title and Position Description	Mechanical Fitter/Relief Water & Wastewater Treatment Plant Operator (Apprentice ATSI)	Modify position to benefit operational needs of Directorate and opportunities for aboriginal employment	Utilities
Projects Engineer, Reporting to Engineering Design & Approvals Manager	Position Title, Position Description and Reporting	Senior Water & Wastewater Engineer, Reporting to Water & Wastewater Manager	Modify position to benefit operational needs of Directorate	Utilities
Senior Design Engineer, Reporting to Engineering Design & Approvals Manager	Position Title, Position Description and Reporting	Senior Water & Wastewater Engineer, Reporting to Water & Wastewater Manager	Modify position to benefit operational needs of Directorate	Utilities
Senior Engineering Coordinator, Reporting to Engineering Design & Approvals Manager	Position Title, Reporting	Senior Engineer, Reporting to Engineering Design Coordinator	Modify position to benefit operational needs of Directorate	Utilities
Design Engineer, Reporting to Senior Engineering Coordinator	Reporting	Reporting to Engineering Design Coordinator	Modify position to benefit operational needs of Directorate	Utilities

OPTIONS

OPTION 1

As per recommendation.

OPTION 2

As per recommendation subject to endorsement of variations to the budget other than included in this report.

POLICY IMPLICATIONS

Not Applicable

FINANCIAL IMPLICATIONS

As a result of the September 2019/20 Quarterly Review process, there has been a decrease in the Ordinary Fund's operating surplus of (\$3,002,799), and an increase of \$104,155 to Waste Fund's operating surplus, a decrease of (\$246,463) to the Water Fund's operating surplus, and a decrease of (\$171,034) to the Sewer Fund's operating surplus, all having been identified and requested as outlined above.

LEGAL/STATUTORY IMPLICATIONS

In accordance with Section 405 of the Local Government Act 1993.

In accordance with Division 3, Section 203 of the Local Government (General) Regulation 2005.

ENVIRONMENTAL IMPLICATIONS

Not Applicable

COMMUNITY IMPLICATIONS

Not Applicable

LINK TO STRATEGIC PLAN

This item links to Council's Strategic Plan item C5 - To provide a governance role in the continuous development of the City of Griffith.

CONSULTATION

Senior Management Team

The majority of the source information contained in this review has been supplied by the individual managers responsible for each department or program.

Assistant Accountant – Financial

ATTACHMENTS

- (a) Report by Responsible Accounting Officer at 30 September 2019 (under separate cover) ➡
- (b) Income & Expenses Budget Review Statement (Fund Level) at 30 September 2019 (under separate cover) ➡
- (c) Income & Expense Budget Review Statement (Program Level) at 30 September 2019 (under separate cover) ➡
- (d) Capital, Cash & Investment Budget Review Statement at 30 September 2019 (under separate cover) ➡
- (e) Budget Review Contracts at 30 September 2019 (under separate cover) ➡
- (f) Budget Review Consultancy, Legal & Vandalism Expenses at 30 September 2019 (under separate cover) ➡
- (g) Operational Plan Action (Performance Indicators) (under separate cover) ➡
- (h) Budget Review Councillors Expenses at 30 September 2019 (under separate cover) ➡

CLAUSE **CL07**

TITLE **Griffith City Council Annual Report 2018/19**

FROM **Shireen Donaldson, Director Economic & Organisational Development**

TRIM REF **19/86205**

SUMMARY

Council has a statutory obligation to prepare an Annual Report in accordance with Section 428 of the Local Government Act 1993, the Local Government (General) Regulation 2005 and the Integrated Planning and Reporting Guidelines.

Accordingly, Griffith City Council's Annual Report for 2018/19 is attached.

RECOMMENDATION

Council receive and note the Annual Report 2018/19.

REPORT

The Annual Report is a key point of accountability between Council and its community. It reports on progress made against Council's commitments in the Delivery Program (4 year plan) and Operational Plan 2018/19 (budget), and describes how Council is supporting achievement of the Community Strategic Plan.

The Annual Report includes statutory information and financial reporting that is prescribed by the Local Government Act 1993 and Local Government (General) Regulation 2005.

As required, the Annual Report will be provided to the Minister for Local Government by 30 November 2019.

In accordance with the Government Information (Public Access) Act (GIPA) Act 2009 the Annual Report will be made publicly available on Council's website.

OPTIONS

Council note the Annual Report 2018/19.

POLICY IMPLICATIONS

Not Applicable

FINANCIAL IMPLICATIONS

The Annual Report 2018/19 details Council's financial activities for 2018/19.

LEGAL/STATUTORY IMPLICATIONS

Local Government Act 1993

Local Government (General) Regulation 2005

ENVIRONMENTAL IMPLICATIONS

The Annual Report 2018/19 details Council's environmental activities for 2018/19.

COMMUNITY IMPLICATIONS

The Annual Report 2018/19 details Council's community activities for 2018/19.

LINK TO STRATEGIC PLAN

This item links to Council's Strategic Plan item 1.1 Provide clear and transparent communication to the community.

This item links to Council's Strategic Plan item 1.2 Be well informed, proactive and responsive to current issues that impact our community.

CONSULTATION

Senior Management Team

Council Officers

ATTACHMENTS

(a) Annual Report - 2018/19 (under separate cover)

CLAUSE CL08**TITLE** Investments at 31 July, 31 August and 30 September 2019**FROM** Vanessa Edwards, Finance Manager**TRIM REF** 19/89615

SUMMARY

This report details Council's investments performance for the months of July, August and September 2019.

RECOMMENDATION

The report be noted by Council.

REPORT

In accordance with Section 212 of the Local Government (General) Regulation 2005, it is hereby certified that the investments detailed in the attached schedules have been made in accordance with Section 625 of the Local Government Act 1993, its Regulations and Council's current investment policy and strategy which were last amended and adopted on 13 February 2018.

Management is striving to continuously build up cash and investment returns to ensure ongoing financial stability and liquidity into the future.

OPTIONS

Not Applicable

POLICY IMPLICATIONS

The actions taken comply with Council's current investment policy and strategy, and the Ministerial Order as provided by the NSW Office of Local Government.

FINANCIAL IMPLICATIONS

As at the 30 September 2019, Council had received a total of \$239,562 in interest coupon payments and a further \$16,455 interest from its ordinary trading account, giving a total cash received of \$256,017 YTD.

The overall net interest income recognised (when combining both interest received and mark-to-market entries) at 30 September 2019 was \$381,140 against the YTD budget of \$320,745.

Council has a mix of growth and fixed income investments in the portfolio and at certain times growth assets are exposed to equity market fluctuations (volatility) and may incur valuation reductions that can impact on reported profits. These are long term assets and Council has no intention of divesting any of these assets when at cyclical lows and therefore crystallising any losses. Invariably, these assets will regain and increase their values and they make up a valuable diversity in Council's portfolio overall.

Council is operating in an ongoing, very low interest rate environment and it is difficult to obtain higher yields on investments whilst maintaining appropriate diversification of investments. Council's investments are diversified primarily across TCorp Managed Funds, term deposits, fixed income bonds and floating rate notes which are largely determined by the restrictions in place by the Minister's Order. Council's investments are diversified, all highly rated and of high quality.

LEGAL/STATUTORY IMPLICATIONS

Section 212 of the Local Government (General) Regulation 2005.

ENVIRONMENTAL IMPLICATIONS

Not Applicable

COMMUNITY IMPLICATIONS

Not Applicable

LINK TO STRATEGIC PLAN

This item links to Council's Strategic Plan item: C1- Provide clear and transparent communication to the local community on matters in which it is concerned.

CONSULTATION

Senior Management Team

ATTACHMENTS

(a)	Statement of Funds at 31 July 2019 ↓	69
(b)	Statement of Funds at 31 August 2019 ↓	70
(c)	Statement of Funds at 30 September 2019 ↓	71
(d)	Investment Returns Analysis 12 Months Annualised ↓	72

(a) Statement of Funds at 31 July, 2019

GRIFFITH CITY COUNCIL
Statement of Funds Invested under Section 625 of the Local Government Act, 1993
31 July, 2019

INVESTMENTS

Type	Valuation Balance as at 31 July, 2019	Cash Flows for July, 2019	Non-Cash Valuation Adj's July, 2019	Fund as a Percentage of Total Investments
Cash/Managed Funds				
3.790% BT Institutional Cash Fund	7,627.37	21.74		0.02%
6.710% Perpetual Credit Income Fund	872,008.57	4,332.50		1.87%
8.940% NSW Treasury Corp -Long Term Growth Fund	1,388,434.32		22,791.12	2.97%
6.380% NSW Treasury Corp -Medium Term Growth Fund	5,001,700.02		53,032.87	10.71%
0.060% NSW Treasury Corp - Short Term Income Fund	3,512,970.93	4,136.60	6,604.94	7.52%
2.340% NSW Treasury Corp -Cash Fund	7,435,323.61	10,409.90	3,181.43	15.92%
1.650% UBS Cash Management Trust Account	62,964.20	84.33		0.13%
N/A ANZ Premium Business Saver Account	7,566.13	(7.05)		0.02%
Term Deposits				
2.200% AMP 272 Day Term Deposit Maturity 13/3/20	2,000,000.00	3,945.12		4.28%
3.000% BOQ 3 Yr Term Deposit Maturity 6/12/21	1,051,043.19	2,627.61		2.25%
2.750% NAB Bank 1 Yr Term Deposit Maturity 5/12/19	500,000.00	1,130.14		1.07%
2.750% ING 2 Yr Term Deposit Maturity 7/12/20	1,500,000.00	3,437.50		3.21%
2.800% NAB 2 Yr Term Deposit Maturity 2/11/2020	2,000,000.00	4,673.06		4.28%
2.150% Westpac Bank Notice Saver 60 Day	2,224,208.72	4,169.41		4.76%
2.100% Westpac Bank Notice Saver 31 Day	4,994,563.41	9,137.67		10.69%
2.860% Westpac Fixed/Floating Deposit Maturity 31/8/22	1,000,000.00			2.14%
2.600% St George 1 Yr Term Deposit Maturity 3/5/20	1,500,000.00	3,250.00		3.21%
Bank Bonds/Floating Rate Notes				
2.650% Bendigo Adelaide Bank Floating Rate Note Maturity 18/08/20	1,007,100.00		740.00	2.16%
2.650% Bendigo Adelaide Bank Floating Rate Note Maturity 18/08/20	1,007,100.00		740.00	2.16%
2.890% Rabo Bank Floating Rate Note Maturity 4/3/21	1,526,430.00		975.00	3.27%
2.311% ANZ Bank Floating Rate Note Maturity 7/4/21	1,014,370.00	7,238.61	1,580.00	2.17%
2.339% CBA 5 Year FRN Maturity 12/7/21	1,016,550.00	7,230.00	2,480.00	2.18%
2.655% Westpac Domestic Note Bond Maturity 7/2/2022	1,526,430.00		5,760.00	3.27%
2.255% AMP Bank Floating Rate Note Maturity 30/03/22	995,130.00		180.00	2.13%
2.865% NAB Floating Rate Note Maturity 26/9/2023	1,519,650.00		12,450.00	3.25%
2.257% CBA 5 Year FRN Maturity 11/01/24	1,022,910.00	7,040.00	8,520.00	2.19%
2.228% Westpac FRN Maturity 24/04/24	1,024,230.00	7,024.45	9,310.00	2.19%
Total	46,718,310.47	79,881.59	128,345.36	96%
Balance of Griffith City Council Trading Bank Account	11,535,801.62			
GHFL/HHF Bank Account Balances	73,374.45			
Total Cash & Investments at 31/7/19	58,327,486.54			

INTEREST

Interest Analysis	Actual
Accumulated Interest Brought Forward	-
Interest received on Griffith Health Facilities Limited Bank Accounts YTD July 2019	6.25
Interest received on CUC Invested Grant Monies YTD July 2019	857.24
Investment Interest for the month of July 2019	207,369.71
Current Bank Account Interest for the month of July 2019	5,849.33
Total Interest YTD July 2019	214,082.53
Original Estimated Investment Income YTD July 2019	106,915.00
Over (Under) Original Estimate	107,167.53
Percentage of Original Estimate Raised	200.24%
Percentage of Year at Report Date	8.33%

Fund	Original Estimate YTD	Actual YTD	Percentage of Original Estimate
Ordinary Fund	42,917.00	103,272.08	240.63%
Water Fund	35,415.00	65,569.06	185.14%
Sewerage Fund	15,000.00	24,076.90	160.51%
Waste Fund	13,333.00	20,761.51	155.72%
Western Riverina Library	250.00	402.98	161.19%
Total	106,915.00	214,082.53	200.24%
Percentage of Year at Report Date			8.33%

In accordance with Section 212 of the Local Government (General) Regulation 2005, I hereby certify that the investments detailed above are made in accordance with the Local Government Act, its regulations and Council's investment policy adopted on 13 February, 2018.



RESPONSIBLE ACCOUNTING OFFICER

(b) Statement of Funds at 31 August, 2019

GRIFFITH CITY COUNCIL
Statement of Funds Invested under Section 625 of the Local Government Act, 1993
31 August, 2019

INVESTMENTS

Type	Valuation Balance as at 31 August, 2019	Cash Flows for August, 2019	Non-Cash Valuation Adj's August, 2019	Fund as a Percentage of Total Investments
Cash/Managed Funds				
3.790% BT Institutional Cash Fund	7,630.26	2.89		0.02%
6.710% Perpetual Credit Income Fund	873,128.65	1,120.08		1.87%
8.940% NSW Treasury Corp -Long Term Growth Fund	1,384,927.01		(3,507.31)	2.96%
6.380% NSW Treasury Corp -Medium Term Growth Fund	5,015,943.98		14,243.96	10.74%
0.060% NSW Treasury Corp - Short Term Income Fund	3,514,981.19	4,749.10	(2,738.84)	7.52%
2.340% NSW Treasury Corp -Cash Fund	7,440,820.24	8,124.99	(2,628.36)	15.93%
1.650% UBS Cash Management Trust Account	63,049.77	85.57		0.13%
N/A ANZ Premium Business Saver Account	7,559.33	(6.80)		0.02%
Term Deposits				
2.200% AMP 272 Day Term Deposit Maturity 13/3/20	2,000,000.00	3,956.16		4.28%
3.000% BOQ 3 Yr Term Deposit Maturity 6/12/21	1,051,043.19	2,627.61		2.25%
2.750% NAB Bank 1 Yr Term Deposit Maturity 5/12/19	500,000.00	1,130.14		1.07%
2.750% ING 2 Yr Term Deposit Maturity 7/12/20	1,500,000.00	3,437.50		3.21%
2.800% NAB 2 Yr Term Deposit Maturity 2/11/2020	2,000,000.00	4,673.06		4.28%
2.150% Westpac Bank Notice Saver 60 Day	2,227,773.54	3,564.82		4.77%
2.100% Westpac Bank Notice Saver 31 Day	5,002,363.13	7,799.72		10.71%
2.860% Westpac Fixed/Floating Deposit Maturity 31/8/22	1,000,000.00	7,208.77		2.14%
2.600% St George 1 Yr Term Deposit Maturity 3/5/20	1,500,000.00	3,250.00		3.21%
Bank Bonds/Floating Rate Notes				
2.070% Bendigo Adelaide Bank Floating Rate Note Maturity 18/08/20	1,005,840.00	6,606.85	(1,260.00)	2.15%
2.070% Bendigo Adelaide Bank Floating Rate Note Maturity 18/08/20	1,005,840.00	6,606.85	(1,260.00)	2.15%
2.890% Rabo Bank Floating Rate Note Maturity 4/3/21	1,523,670.00		(2,760.00)	3.26%
2.311% ANZ Bank Floating Rate Note Maturity 7/4/21	1,012,390.00		(1,980.00)	2.17%
2.339% CBA 5 Year FRN Maturity 12/7/21	1,014,070.00		(2,480.00)	2.17%
2.115% Westpac Domestic Note Bond Maturity 7/2/2022	1,521,840.00	10,038.08	(4,590.00)	3.26%
2.255% AMP Bank Floating Rate Note Maturity 30/03/22	992,610.00		(2,520.00)	2.12%
2.833% NAB Floating Rate Note Maturity 26/9/2023	1,512,600.00		(7,050.00)	3.24%
2.257% CBA 5 Year FRN Maturity 11/01/24	1,017,770.00		(5,140.00)	2.18%
2.228% Westpac FRN Maturity 24/04/24	1,018,430.00		(5,800.00)	2.18%
Total	46,714,280.29	74,975.39	(29,470.55)	96%

Balance of Griffith City Council Trading Bank Account 13,944,013.20
 GHFL/HHF Bank Account Balances 73,379.13

Total Cash & Investments at 31/8/19 60,731,672.62

INTEREST

Interest Analysis	Actual
Accumulated Interest Brought Forward	213,219.04
Interest received on Griffith Health Facilities Limited Bank Accounts YTD August 2019	10.93
Interest received on CUC Invested Grant Monies YTD August 2019	1,588.96
Investment Interest for the month of August 2019	44,773.09
Current Bank Account Interest for the month of August 2019	5,006.90
Total Interest YTD August 2019	264,598.92
Original Estimated Investment Income YTD August 2019	213,830.00
Over (Under) Original Estimate	50,768.92
Percentage of Original Estimate Raised	123.74%
Percentage of Year at Report Date	16.67%

Fund	Original Estimate YTD	Actual YTD	Percentage of Original Estimate
Ordinary Fund	85,834.00	129,853.23	151.28%
Water Fund	70,830.00	79,732.10	112.57%
Sewerage Fund	30,000.00	29,277.55	97.59%
Waste Fund	26,666.00	25,246.03	94.67%
Western Riverina Library	500.00	490.01	98.00%
Total	213,830.00	264,598.92	123.74%
Percentage of Year at Report Date		16.67%	

In accordance with Section 212 of the Local Government (General) Regulation 2005, I hereby certify that the investments detailed above are made in accordance with the Local Government Act, its regulations and Council's investment policy adopted on 13 February, 2018.



RESPONSIBLE ACCOUNTING OFFICER

(c) Statement of Funds at 30 September, 2019

GRIFFITH CITY COUNCIL
Statement of Funds Invested under Section 625 of the Local Government Act, 1993
30 September, 2019

INVESTMENTS

Type	Valuation Balance as at 30 September, 2019	Cash Flows for September, 2019	Non-Cash Valuation Adj's September, 2019	Fund as a Percentage of Total Investments
Cash/Managed Funds				
3.790% BT Institutional Cash Fund	7,641.09	10.83		0.02%
6.710% Perpetual Credit Income Fund	876,426.84	3,298.19		1.87%
8.940% NSW Treasury Corp -Long Term Growth Fund	1,400,189.61		15,262.60	2.99%
6.380% NSW Treasury Corp -Medium Term Growth Fund	5,040,045.36		24,101.38	10.78%
0.060% NSW Treasury Corp - Short Term Income Fund	3,518,367.66	6,770.30	(3,383.83)	7.52%
2.340% NSW Treasury Corp -Cash Fund	7,447,399.76	8,971.56	(2,392.04)	15.92%
1.650% UBS Cash Management Trust Account	63,148.23	98.46		0.14%
N/A ANZ Premium Business Saver Account	7,551.77	(7.56)		0.02%
Term Deposits				
2.200% AMP 272 Day Term Deposit Maturity 13/3/20	2,000,000.00	3,616.38		4.28%
3.000% BOQ 3 Yr Term Deposit Maturity 6/12/21	1,051,043.19	2,627.61		2.25%
2.750% NAB Bank 1 Yr Term Deposit Maturity 5/12/19	500,000.00	1,130.14		1.07%
2.750% ING 2 Yr Term Deposit Maturity 7/12/20	1,500,000.00	3,437.50		3.21%
2.800% NAB 2 Yr Term Deposit Maturity 2/11/2020	2,000,000.00	4,673.06		4.28%
2.150% Westpac Bank Notice Saver 60 Day	2,231,463.09	3,689.55		4.77%
2.100% Westpac Bank Notice Saver 31 Day	5,010,435.43	8,072.30		10.71%
2.860% Westpac Fixed/Floating Deposit Maturity 31/8/22	1,000,000.00			2.14%
2.600% St George 1 Yr Term Deposit Maturity 3/5/20	1,500,000.00	3,250.00		3.21%
Bank Bonds/Floating Rate Notes				
2.070% Bendigo Adelaide Bank Floating Rate Note Maturity 18/08/20	1,005,360.00		(480.00)	2.15%
2.070% Bendigo Adelaide Bank Floating Rate Note Maturity 18/08/20	1,005,360.00		(480.00)	2.15%
2.890% Rabo Bank Floating Rate Note Maturity 4/3/21	1,522,350.00	10,928.09	(1,320.00)	3.25%
2.311% ANZ Bank Floating Rate Note Maturity 7/4/21	1,012,390.00		-	2.16%
2.339% CBA 5 Year FRN Maturity 12/7/21	1,013,250.00		(820.00)	2.17%
2.115% Westpac Domestic Note Bond Maturity 7/2/2022	1,521,135.00		(705.00)	3.25%
2.255% AMP Bank Floating Rate Note Maturity 30/03/22	992,740.00	5,806.37	130.00	2.12%
2.833% NAB Floating Rate Note Maturity 26/9/2023	1,510,950.00	18,332.40	(1,650.00)	3.23%
2.257% CBA 5 Year FRN Maturity 11/01/24	1,016,550.00		(1,220.00)	2.17%
2.228% Westpac FRN Maturity 24/04/24	1,017,620.00		(810.00)	2.18%
Total	46,771,417.03	84,705.18	26,233.11	96%
Balance of Griffith City Council Trading Bank Account	11,803,307.32			
GHFL/HHF Bank Account Balances	73,383.97			
Total Cash & Investments at 30/9/19	58,648,108.32			

INTEREST

Interest Analysis	Actual
Accumulated Interest Brought Forward	262,999.03
Interest received on Griffith Health Facilities Limited Bank Accounts YTD September 2019	15.77
Interest received on CUC Invested Grant Monies YTD September 2019	2,346.25
Investment interest for the month of September 2019	110,181.00
Current Bank Account Interest for the month of September 2019	5,598.77
Total Interest YTD September 2019	381,140.82
Original Estimated Investment Income YTD September 2019	320,745.00
Over (Under) Original Estimate	60,395.82
Percentage of Original Estimate Raised	118.83%
Percentage of Year at Report Date	25.00%

Fund	Original Estimate YTD	Actual YTD	Percentage of Original Estimate
Ordinary Fund	128,751.00	187,468.19	145.61%
Water Fund	106,245.00	114,600.51	107.86%
Sewerage Fund	45,000.00	42,081.20	93.51%
Waste Fund	39,999.00	36,286.61	90.72%
Western Riverina Library	750.00	704.31	93.91%
Total	320,745.00	381,140.82	118.83%
Percentage of Year at Report Date		25.00%	

In accordance with Section 212 of the Local Government (General) Regulation 2005, I hereby certify that the investments detailed above are made in accordance with the Local Government Act, its regulations and Council's investment policy adopted on 13 February, 2018.



RESPONSIBLE ACCOUNTING OFFICER

(d) Investments Returns Analysis - 12 month Annualised Yields

INVESTMENT RETURNS ANALYSIS - 12 MONTH ANNUALISED YIELDS			
Month	Average Funds Invested for the month	Interest Earned	Yield %
Sep-18	\$40,810,245	\$68,048	0.17%
Oct-18	\$39,702,333	-\$144,437	-0.36%
Nov-18	\$40,313,217	-\$3,623	-0.01%
Dec-18	\$42,252,285	-\$21,790	-0.05%
Jan-09	\$44,694,407	\$283,052	0.63%
Feb-19	\$47,079,646	\$368,960	0.78%
Mar-19	\$47,309,384	\$209,033	0.44%
Apr-19	\$47,486,598	\$261,822	0.55%
May-19	\$48,320,604	\$6,759	0.01%
Jun-19	\$47,802,605	\$330,418	0.69%
Jul-19	\$46,637,995	\$207,370	0.44%
Aug-19	\$46,716,295	\$44,773	0.10%
Sep-19	\$46,742,849	\$110,181	0.24%
12 Month Annualised Performance			3.63%
Current Year Performance Jul 19 - Jun 20			0.78%
(Cash basis only, net of fees)			

TITLE **Petition received 14 November 2019**

TRIM REF **19/93334**

SUMMARY

Petition to be tabled at the meeting.

RECOMMENDATION

The petition be received and noted.

SENIOR MANAGEMENT TEAM COMMENT

Refer to Council's Code of Meeting Practice;

Petitions

23.4 Petitions may be presented to the Council.

23.5 A Councillor may present a petition to the Council.

23.6 The Chairperson must not permit discussion on the petition.

Council is currently conducting a Water Wise information campaign through social and print media promoting conservation of water throughout the City.

OPTIONS

OPTION 1

That Council note the petition as included in the Confidential Business Paper.

OPTION 2

That Council note the petition as included in the Confidential Business Paper and the matter be referred to Workshop for discussion.

ATTACHMENTS

(a) Petition received 14 November 2019 (confidential)

**FLOODPLAIN MANAGEMENT COMMITTEE
HELD IN COUNCIL CHAMBERS ON
THURSDAY, 31 OCTOBER 2019 COMMENCING AT 10:44 AM**

PRESENT

Councillor Dino Zappacosta, Councillor Glen Andreazza (Councillor Alternate), Peter Budd (Community Representative), Joseph Dal Broi (Community Representative), Luigi Forner (Community Representative), Sally Jones (Community Representative), Steve Manwaring (DoPIE), Craig Ronan (SES) via telephone

Quorum = 3

STAFF

Director Utilities, Graham Gordon, Water and Wastewater Manager, Durgananda Chaudhary and Minute Secretary, Leanne Austin

Councillor Zappacosta assumed the Chair in the absence of the Mayor, Councillor John Dal Broi.

1 APOLOGIES

RECOMMENDED on the motion of Peter Budd and Glen Andreazza that apologies be received from Councillor John Dal Broi, General Manager, Brett Stonestreet, Alan Shea (MI), Steve Mortlock (SES), Jeremy Bradshaw (SES) and Engineering Design & Approvals Manager, Joe Rizzo.

2 CONFIRMATION OF MINUTES

RECOMMENDED on the motion of Peter Budd and Joseph Dal Broi that the minutes of the previous meeting held on 20 June 2019, having first been circulated amongst all members, be confirmed.

3 BUSINESS ARISING

3.1 Farm Levees Mirrool Creek

Mr Budd requested an update on the farm levees on Mirrool Creek issue.

Mr Gordon advised that this matter will be further considered as part of Council's budget process. The study will require funding to progress. Council has obtained legal advice on this matter and a study will need to be undertaken to compare with previous mapping. This is not a high priority at the moment due to the current climatic conditions.

Mr Budd stated his concerns that unauthorised levees may be constructed within the catchment area, resulting in changes to what was previously mapped. Mr Budd suggested Council address this by introducing policy or various methods of communication advising landholders that any unauthorised works will be required to be removed. Councillor

Zappacosta advised Council has conveyed the message to the community. It was requested that Council keep the Committee briefed on ongoing discussions regarding this issue.

Sally Jones requested the Committee be informed of what media releases have gone out and communicated to the public in relation to the levee issue. Mr Gordon advised the last flood study was completed in 2015 and any further study will become a budget submission to Council and grant funding sourced.

Mr Manwaring advised an alternative option is to lobby for a rural study for the Mirrool Creek catchment area.

Mr Gordon advised he had had discussions with Duncan McLuckie in relation to review of the Floodplain Development Manual 2005 and Mr Gordon has expressed Council's concerns regarding levees in rural areas. This may be considered as part of the review process. Mr Gordon further stated that when the 2012 event occurred Council consulted with other local Councils to discuss related issues however a combination study was not supported at this time.

Mr Manwaring advised DoPIE Water is responsible for the Water Management Act and engage with key stakeholders throughout the catchment to discuss issues funded by the State Government. An option would be to request a rural study focussing on environmental flows, ensuring maintained flow paths in the river systems. Once the floodway is defined the study could recommend the removal of levees. Mr Manwaring advised the Floodplains Group is currently looking at different locations for rural plans. This could be a potential project for which to obtain funding. A rural study for Mirrool Creek could utilise the upstream model to develop a new rural plan.

Mr Budd agreed with the above option however requested Council advise the community of the implications of constructing unauthorised levee banks in the catchment area. Councillor Andreazza advised a public forum was held at the Griffith Regional Theatre and that many people are aware of the issue.

Mr Budd enquired if the new rural plan would sit beside or overrule the existing plan? Mr Manwaring advised that the urban plan would override the rural plan however, the rural plan will cover areas not covered by the urban plan.

Mr Gordon advised a community forum relating to this issue was held 5 February 2019. The forum was held following a resolution of Council. Council's solicitors provided legal advice and the proper procedure required of landholders was communicated. Information in relation to this issue is also provided on Council's website.

RECOMMENDED on the motion of Sally Jones and Peter Budd that Council engage with DoPIE Water and the State Government to initiate a new rural Floodplain Management Plan for the Mirrool Creek catchment.

3.2 EMR Opening

Councillor Zappacosta advised the EMR was successfully opened and thanked all involved. Mr Manwaring thanked Council for the opportunity to attend the opening.

3.3 Formal Objection to EMR Breaching Protocols from Mr Parisotto

Mr Budd advised he was happy with Council's response to Mr Parisotto. Mr Gordon advised Council had not yet received any further feedback from Mr Parisotto.

4 DECLARATIONS OF INTEREST

Pecuniary Interests

There were no pecuniary interests declared.

Significant Non-Pecuniary Interests

There were no significant non-pecuniary interests declared.

Less Than Significant Non-Pecuniary Interests

Members making a less than significant non-pecuniary interest declaration may stay in the meeting and participate in the debate and vote on the matter.

Councillor Dino Zappacosta

CL03 Hanwood Stormwater Pump and Levee

Reason - Councillor Zappacosta owns a business in the Hanwood village.

Sally Jones

General Declaration

Reason – No flooding has occurred at own property North Corynnia in 2012 or 2016. No direct income from family holdings at present.

5 ITEMS OF BUSINESS

CL01 YOOGALI MCCORMACK ROAD LEVEE AND CULVERT UPGRADE

Mr Gordon provided the following presentation:

3 Stages of the project are:

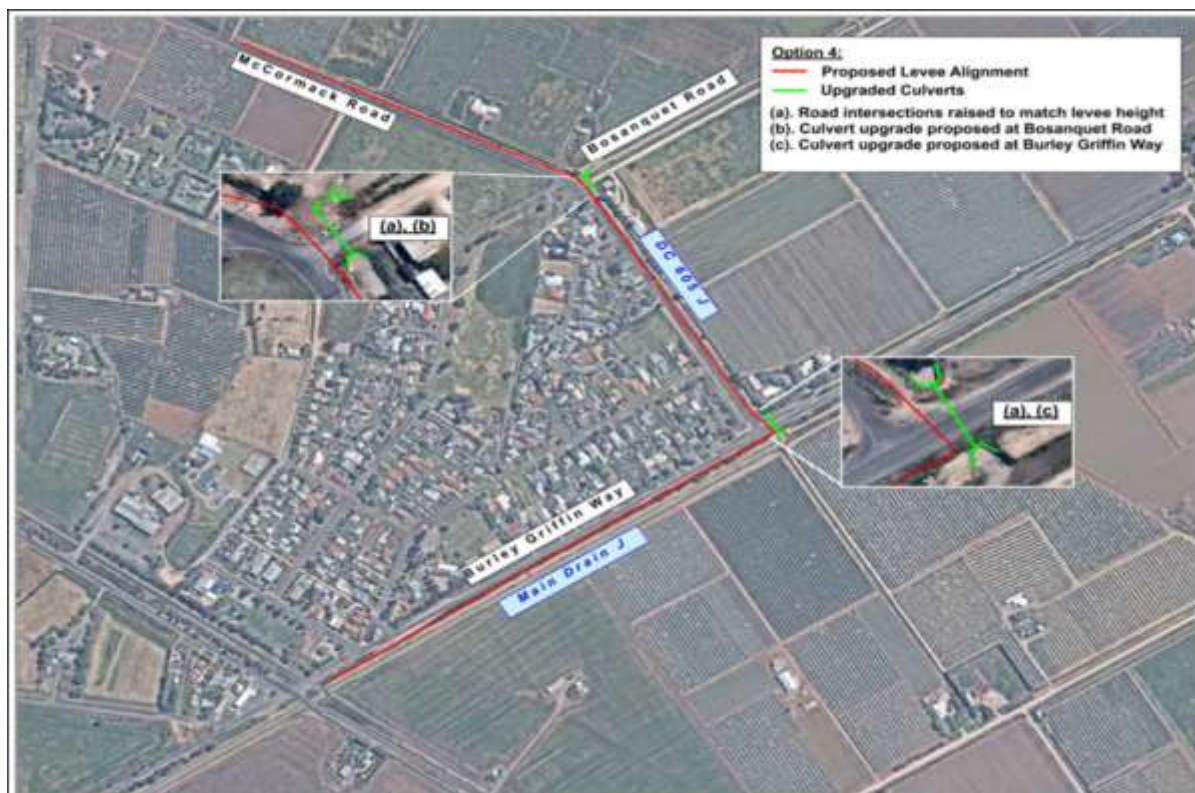
1. Culvert upgrade at McCormack Road – Burley Griffin Way junction and McCormack Road – Bosanquet Road intersection – received funding (\$400,000)
2. Levee along McCormack Road, and
3. Raising Burley Griffin Way as levee.

What next:

1. Tendering
2. Selection of Contractor
3. Construction.

Mr Gordon advised consideration needs to be given to the Yoogali intersection upgrade during staging of the project to ensure options are available in case of road closures for works.

Mr Manwaring advised the Committee will need to discuss grant applications for next year as applications close in March 2020.



CL02 FLOODGATES AT THE EMR - OFFICIAL OPENING

Councillor Zappacosta suggested a letter of thanks be sent to the parties involved in the EMR floodgates project including DoPIE, Yenda Progress Association, and Murrumbidgee Irrigation (MI).

RECOMMENDED on the motion of Luigi Forner and Councillor Glen Andreazza that letters be sent to key stakeholders involved in the installation of floodgates at the EMR and staff involved in the project be acknowledged.

Mr Gordon advised MI have agreed to undertake maintenance of gates and ensure the EMR is operational. Ownership remains with Council. Protocols will determine the process for opening of the floodgates. Opening of the gates is done by MI, with Council being the flood authority. The Emergency Operation Centre is the responsible authority in larger flood events. Early warning systems will trigger action as outlined in the protocols.

Councillor Andreazza enquired what is the end of life for the EMR gates? Mr Gordon advised the gates should last for at least 100 years.

Mr Budd enquired if provisions were in place for power failure? Mr Gordon advised the gates are solar operated with appropriate back up power.

CL03 HANWOOD STORMWATER PUMP AND LEVEE

Mr Gordon provided the following presentation:



Background

To alleviate existing flooding in Hanwood, the "Griffith Main Drain J and Mirrool Creek Floodplain Risk Management Study and Plan" (BMT WBM, 2015) proposed the following flood mitigation works:

- Approximately 700m of earthen bund constructed along left bank alignment of DC 'DA' and DC 'HANDEPOT'.
- Provision of one-way flow structures on DC '0491D' and DC 'HANDEPOT'.
- The installation of pumps on DC '0491D' and DC 'HANDEPOT' to discharge local catchment runoff from behind the bund into DC 'DA' during periods when the one-way flow structures are 'locked'.

It is preferred to install a single, larger stormwater pump station in place of the two smaller pump stations nominated above.



Project Location





Detailed Design

- Draft Detailed Design has been completed.
- Documentation includes:
 - Detailed engineering drawings for pump station, levee, road raising and associated works
 - Pump station and levee Operation and Maintenance Manual
 - Review of Environmental Factors (REF)
 - Construction cost estimate
 - Detailed design report



Detailed Design

- As previously agreed, Option 8 has been developed to detailed design.
- Key features of the design are noted below:
 - Earth levee between DC Handepot and private lots to Wattle St
 - Earth levee between DC Handepot and private lots Wattle to Mallee St
 - Earth levee along DC DA, north of Mallee St
 - Earth levee along DC DA, north of Leonard Rd
 - Stormwater pump station
 - Trunk stormwater drainage discharging to pump station
 - Local stormwater upgrades
 - Non-return valves on culverts to DC Handepot and DC DA
 - Raising of Hanwood Rd/Mallee St/Leonard Rd
 - Construction of kerb and gutter on northern side of Leonard Road
 - Local utility adjustments to suit new ground levels





Staging

- Council proposes to stage the construction of the project.
- First stage will be installation of the stormwater pump station, non-return valves and associated trunk stormwater drainage infrastructure.
- Subsequent stages may include construction of the proposed levees followed by raising of Hanwood Road.
- All works are subject to funding approvals.



Estimated Construction Costs

- 1a. Stormwater Pump Station: \$600,000
- 1b. Non-Return Valves and Associated Pipe Works: \$550,000
- 1c. Total: \$1,150,000

- 2. Proposed Levee Works and Stormwater Upgrades: \$550,000
- 3. Raising of Roads and Associated Works: \$1,000,000

- Total Estimated Project Cost: \$2,700,000
- Includes 10% contingency. Excludes GST. Assumes 2019 prices.



Next Stages

- Next stage is public consultation.
- Following community consultation, detailed design documents will be finalised to allow Council to release a tender for construction (subject to funding).

Ms Jones requested clarification on the costing of the project. Mr Gordon advised the Yenda and Yoogali projects were smaller projects in comparison to Hanwood. A lot of the infrastructure including pump station is underground and trunk drainage more than 3 m deep. The size and depth of construction lends to larger machinery and larger project costs. There is also a road component cost which the State Government will be asked to contribute to.

RECOMMENDED on the motion of Peter Budd and Glen Andreazza that the Committee endorse the draft design documents for the Hanwood Stormwater Pump and Levee and place the draft design on public exhibition for 28 days.

CL04 PROPOSED 2020 MEETING DATES

RECOMMENDED on the motion of Joseph Dal Broi and Peter Budd that the proposed Committee meeting dates for 2020 are 6 February, 7 May, and 6 August.

6 OUTSTANDING ACTION REPORT

RECOMMENDED on the motion of Sally Jones and Glen Andreazza that the report be noted and the following items be removed:

Formal Objection to EMR Breaching Protocols – 20 June 2019

Construction of Floodgates EMR – 20 June 2019.

7 GENERAL BUSINESS

7.1 Letter from Insurance Council of Australia re Insurance Policy Holders – Yenda

Mr Budd enquired if the Flood Study and Plan requires updating given that the EMR floodgates have been constructed. A review of the mapping may assist Yenda residents in relation to insurance costs. Mr Gordon advised the current mapping will need to be updated and this would be presented to Council as a budget bid. Some areas of Yenda may still be susceptible to flooding. Mr Manwaring advised that as the models already exist it would be a matter of updating data and running through the models. Mr Gordon advised community consultation may be required and possibly a Local Environmental Plan review. This issue is to be further investigated and discussed at the next meeting in February.

7.2 Flows to Barrenbox Swamp

Mr Dal Broi stated his concerns with the bottleneck caused by incoming flows into Barrenbox Swamp. Mr Dal Broi enquired if it was possible to increase flow capacity of Main Drain J through widening of the channel. Mr Gordon advised that Council is aware of this issue and Main Drain J mitigation measures have been included in previous studies and plans however this would require major works and funding. Mr Gordon advised the Committee could consider mitigation options when applying for future funding however cost/benefit ratio usually determines priority of works.

Mr Budd suggested that the bridge structures along the channel are the cause of issues with water flow. Widening the channel may not alleviate the problem.

Councillor Zappacosta suggested the Committee look at the Barrenbox Swamp area next meeting.

Mr Gordon advised this matter will require consultation with MI.

Ms Jones enquired if decision protocols exist for Barrenbox Swamp and suggested protocols be put in place for decision making at Barrenbox storage as part of the overall management of the system.

RECOMMENDED on the motion of Peter Budd and Sally Jones that:

- (a) A report be prepared for the next Committee meeting in relation to Main Drain J advising of flow rates at various points, structures, and recent upgrades.
- (b) Options to be presented regarding implementing protocols for Barrenbox Swamp during flooding situations.
- (c) Carrathool Shire to be represented at the next meeting.

An invitation is to be extended to Paul Farrell, Director Infrastructure at Carrathool Shire for the next meeting.

7.3 Pumping Station at Yenda

Mr Forner asked if Council has plans to install a second pump station at Yenda. Mr Gordon advised installation of a pump station to alleviate minor flooding in Park Street is included in the strategy for urban flooding for Yenda however this depends on other projects during budget time. To be added to the Outstanding Action Report for follow up.

7.4 Early Warning System

Ms Jones suggested that Council provide information regarding the early warning gauges so Committee members can log in to view readings, particularly as there is a large rain event predicted for this weekend. This may be an opportunity to let the community know where to find this information. Mr Gordon advised the Water Live App will provide access to readings through the Mirrool Creek Barellan and Mirrool Creek EMR readings.

Mr Dal Broi left the meeting at 12:12 pm.

8 NEXT MEETING

The next meeting of the Floodplain Management Committee is to be held on 6 February 2019 at 10.30 am.

There being no further business the meeting terminated at 12:15 pm.

Confirmed:

CHAIRPERSON

**AUDIT, RISK AND IMPROVEMENT COMMITTEE
HELD IN THE MURRAY ROOM, GRIFFITH ON
THURSDAY, 31 OCTOBER 2019 COMMENCING AT 5:04 PM**

PRESENT

Stuart Heffer (Community Representative), Councillor Dino Zappacosta, Christine Stead (Councillor - Alternate), George Youssef (Community Representative)

Quorum = 3

STAFF

Director Business, Cultural Financial, Max Turner and Minute Secretary, Leanne Austin

1 APOLOGIES

An apology was received from Internal Auditor Keith Coates.

2 CONFIRMATION OF MINUTES

RECOMMENDED on the motion of George Youssef and Stuart Heffer that the notes of the meeting held 17 October 2019 and the minutes of the meeting held 27 June 2019, having first been circulated amongst all members, be confirmed.

Mr Youssef advised he had submitted a late apology for the meeting held 17 October 2019.

3 BUSINESS ARISING

3.1 Staff Survey

Mr Heffer advised that a copy of the letter from the Office Local Government had been forwarded to him and that Mr Stonestreet had updated the Committee at the previous meeting in relation to the progress of the staff survey. The Committee agreed that the results of the survey are to be dealt with by the General Manager.

4 DECLARATIONS OF INTEREST

Pecuniary Interests

There were no pecuniary interests declared.

Significant Non-Pecuniary Interests

There were no significant non-pecuniary interests declared.

Less Than Significant Non-Pecuniary Interests

There were no significant non-pecuniary interests declared.

5 ITEMS OF BUSINESS

CL01 ANNUAL FINANCIAL REPORTS, MANAGEMENT LETTER AND EXTERNAL AUDIT REPORTS

Mr Heffer advised that a representative from Crowe Horwath had addressed the Committee at the previous meeting. There were no concerns with the reports presented. Mr Turner advised that the final Management Letter provided a summary of issues with only 8 concerns of moderate to low risk. Council is working through the issues outlined and making good progress.

Councillor Zappacosta entered the meeting at 5:09 pm.

Mr Turner advised the Financial Statements have been lodged by the due date and will be presented to Council 26 November for adoption.

Mr Heffer enquired about water revaluation. Mr Turner confirmed that this is done on an annual basis.

RECOMMENDED on the motion of George Youssef and Councillor Dino Zappacosta that:

- (a) The Audit, Risk & Improvement Committee note and endorse the following documents:
 - Annual Financial Statements,
 - Management Letter,
 - Report on Conduct of the Audit,
 - Report on General Purpose Financial Statements,
 - Report on Special Purpose Financial Statements,
 - Report on Special Schedule Permissible Income for General Rates.
- (b) The Committee advise the NSW Audit Office the above documents have been endorsed.
- (c) The 2018/19 Financial Statements be tabled at the Ordinary Meeting of Council 26 November 2019.

Mr Turner left the meeting at 5:14 pm.

CL02 INTERNAL AUDIT REPORTS - FLEET MANAGEMENT REVIEW JULY 2019

RECOMMENDED on the motion of Councillor Dino Zappacosta and George Youssef that the Fleet Management Review report be accepted.

CL03 IT AUDIT - DRAFT SCOPE

RECOMMENDED on the motion of Councillor Dino Zappacosta and George Youssef that:

- (a) The Committee endorse the scope for an IT Audit.
- (b) Should any changes be required to the scope following attendance at the Internal Audit Forum 14 November 2019, the revised scope be emailed to Committee members for approval.
- (c) Quotations be sought from service providers following the above recommendations.

CL04 INTERNAL AUDIT AND RISK MANAGEMENT FRAMEWORK - DISCUSSION PAPER

The Committee discussed implications of the new Risk Management and Internal Audit Framework Discussion Paper. The main concerns with the proposed guidelines are:

- Prequalification Scheme – may be difficult for rural/regional Councils to appoint members based locally.
- Appointment of Chief Audit Executive, support staff and Risk Management personnel will impose greater financial implications to Council.
- Payment of members will impose greater financial implications to Council particularly if travel and accommodation costs are incurred.
- Software may need to be purchased to monitor programs and provide required reporting.
- Training for staff and committee members addressing additional requirements should be provided.

Council submission to be emailed to Committee members for information.

RECOMMENDED on the motion of George Youssef and Stuart Heffer that the Audit Risk Improvement Committee support a submission on behalf of Council incorporating the above concerns.

6 OUTSTANDING ACTION REPORT

RECOMMENDED on the motion of George Youssef and Stuart Heffer that the Outstanding Action Report be noted and that outstanding actions be updated and finalised as a matter of priority.

7 GENERAL BUSINESS

Nil

8 NEXT MEETING

The next meeting of the Audit, Risk and Improvement Committee is to be held in January, 2020 on a Thursday at 5:00 pm, depending on the Internal Auditor's availability.

There being no further business the meeting terminated at 5:45 pm.

Confirmed:

CHAIRPERSON

**TRAFFIC COMMITTEE
HELD IN THE MURRAY ROOM, GRIFFITH ON
TUESDAY, 12 NOVEMBER 2019 COMMENCING AT 10.31 AM**

PRESENT

Councillor Doug Curran (Chair), Jason Hinson (Police Representative), Greg Minehan (RMS), Michael Crump (Member for Murray Representative).

STAFF

Road Safety & Traffic Officer, Greg Balind and Minute Taker; Brittany Everett.

1 APOLOGIES

RECOMMENDED on the motion of Jason Hinson and Greg Minehan that apologies be received from Engineering Design & Approvals Manager, Joe Rizzo and Assistant Engineer - Traffic & Civil, James Tomarchio.

Absent: Brett Jameson (Police alternative), Colin Lonsdale (Police alternative),

2 CONFIRMATION OF MINUTES

RECOMMENDED on the motion of Greg Minehan and Jason Hinson that the minutes of the previous meeting held on 10 September 2019, having first been circulated amongst all members, be confirmed.

3 BUSINESS ARISING

3.1 CL02 – Gurdwara Singh Sabha Society Procession – Float Carrying 6 People – November

The Traffic Committee agree that the request for a float carrying 6 people in the parade is allowed providing strict adherence to the following conditions;

- (a) a one metre railing is to be installed around the float
- (b) the vehicle must not travel over 15 km/h whilst carrying passengers on the float
- (c) passengers must not get on and off the vehicle whilst moving
- (d) seats are to be fixed to the float and passengers must remain seated.

4 DECLARATIONS OF INTEREST

Pecuniary Interests

There were no pecuniary interests declared.

Significant Non-Pecuniary Interests

There were no significant non-pecuniary interests declared.

Less Than Significant Non-Pecuniary Interests

There were no significant non-pecuniary interests declared.

5 ITEMS OF BUSINESS

Michael Crump entered the meeting at 10.37am.

CL01 TRAFFIC MANAGEMENT - GRIFITH COMMUNITY CAROLS BY CANDLELIGHT EVENT

RECOMMENDED on the motion of Greg Minehan and Jason Hinson that the Traffic Committee approve the attached Traffic Control and Event Management Plan relating to the 2019 Carols by Candlelight.

CL02 RESTRICTED PARKING PLAN - YAMBIL STREET BETWEEN JONDARYAN AVENUE AND KOOYOO STREET

RECOMMENDED on the motion of Greg Minehan and Michael Crump that the Traffic Committee (as per the attached plans)

- (a) approve the implementation of 2 hour restricted parking 8:30am – 6pm Mon – Fri and 8:00am – 12:30pm Sat on in the centre parking bays and parallel parking bays on Yambil Street extending from Jondaryan Avenue to Kooyoo Street
- (b) approve the installation of No Stopping Zones associated with the approach and departure side of the Yambil Street pedestrian crossing to the east of Kooyoo Street
- (c) concur with the removal of restricted parking on the western side of Jondaryan Avenue between Yambil Street and Canal Street. The Loading Zone adjacent to Mackay's is to remain.

CL03 COLLIER & TRENNERY CHRISTMAS CELEBRATIONS - TEMPORARY CLOSURE OF DAINES STREET

RECOMMENDED on the motion of Jason Hinson and Michael Crump that the Traffic Committee approve the closure of Daines Street from 1pm to 6pm Saturday 7 December 2019 as per the attached Traffic Control Plan.

CL04 KOOYOO STREET - PROPOSED RESTRICTION FOR VEHICLES OVER 12.5 METRES

RECOMMENDED on the motion of Jason Hinson and Michael Crump that the Traffic Committee support the restriction of vehicles over 12.5 metres along Kooyoo Street between Banna Avenue and Canal Street.

Note: Greg Minehan (RMS) to confirm the appropriate signage with Greg Balind.

CL05 PROPOSED MEETING DATES FOR 2020 - TRAFFIC COMMITTEE

RECOMMENDED on the motion of Greg Minehan and Jason Hinson that the proposed dates for 2020 be noted.

6 OUTSTANDING ACTION REPORT

RECOMMENDED on the motion of Greg Minehan and Jason Hinson that the report be noted and amendments made.

7 GENERAL BUSINESS

7.1 Multicultural Council of Griffith Inc. - 'Carols in the Park' event.

Council has been advised that the Multicultural Council of Griffith Inc. is hosting a Christmas event 'Carols in the Park' on Sunday, 8 December 2019. A Traffic Control and Event Management Plan has not been formalised as Council were only formally advised of the event on 7 November. Prior to that date there was no indication of the context of the event or predicted number of attendees. It is suggested the Traffic Control and Event Management Plan developed and presented in CL01 - Traffic Management - Griffith Community Carols by Candlelight be utilised for this event also to assist with parking and pedestrian access. Councillor Curran again expressed his concerns regarding the mandatory submissions of traffic management documentation to Council not meeting the predetermined deadline period.

RECOMMENDED on the motion of Michael Crump and Greg Minehan the Traffic Committee approve the Traffic Control and Event Management Plan attached in CL01 to be developed and implement for the Multicultural Council of Griffith event 'Carol's in the Park'.

7.2 Rotary Carnival

The Railway Street car park will be closed 29 November 2019 for the establishment of marquees for the Rotary Carnival, this event will be combined with the 'Light Up Griffith' event. Certificate of Currency has been provided and there has been no changes to the event from previous years. In the absence of a Traffic Committee Meeting in October 2019, the traffic control for this event was previously approved electronically.

7.3 Closure of Yoogali Intersection

Irrigation Way between Bartholomew Road and the Yoogali Intersection will be closed for 6 hours on Sunday 15th December 2019 to allow for the relocation of services. Local detours will be in place for light vehicles with heavy vehicles being detoured down the Whitton Stock Route Road, North Kooba Settlers Road and Beelbanger Road.

7.4 Driveway on Kidman Way

There has been a request for the Traffic Committee to discuss the possibility of installing signage alerting drivers that there is a driveway ahead on Kidman Way, South of Adam's Road, due to the amount of near miss incidents. Mr Balind advised this issue has been before the committee on a previous occasion and that the RMS has carriage of the matter. Traffic Committee to review and discuss at the next meeting.

7.5 Surveillance of Hanwood

RMS has recorded 30 days of surveillance and data of key areas on the Kidman Way in Hanwood following a large amount of complaints relating to Parking and the non-compliance of drivers approaching the school crossing. Greg Minehan will present the information and data to the Traffic Committee at the February 2020 meeting.

8 NEXT MEETING

The next meeting of the Traffic Committee is to be held on Tuesday, 10 December 2019 at 10.30 am

There being no further business the meeting terminated at 11.27 am.

Mr Crump was provided with a Committee Induction Pack.

Confirmed:

CHAIRPERSON

TITLE Notice of Motion - Councillor Zappacosta

FROM Dino Zappacosta, Councillor

TRIM REF 19/94096

SUMMARY

A Notice of Motion from Councillor Zappacosta is attached to this report.

RECOMMENDATION

That Council consider the two following issues raised by the Community and Development Council of Griffith Inc.;

- (i) Semi-trailer and truck parking in Watkins Avenue**
- (ii) Pedestrian and mobility access from Griffith Retirement Village via Coolah Street to Banna Avenue.**

SENIOR MANAGEMENT TEAM COMMENT

- 1) The Watkins Avenue area (opposite Harvey Norman) is not a designated truck parking bay and existing road rules restrict parking along nature strips. This area is located in a built up area, therefore heavy vehicles must not park for more than one hour. Council has received a Development Application (DA 186/2018) for the use of the land adjacent as a Truck Depot and Refuelling Facility. Conditions are imposed on the Development Application including construction of kerb and gutter and landscaping which will mitigate these concerns.
- 2) Coolah Street has been identified in the *Griffith Pedestrian and Bicycle Strategy* as Priority (11). Sidlow Road is also identified in the strategy as priority (13). A 1.2m wide footpath has been identified in the strategy to link Kooyoo Street to Canal Street via the existing pedestrian bridge over the canal. Council continues to apply for funding through multiple funding streams to progress with the strategy.

ATTACHMENTS

- (a) Notice of Motion - Councillor Zappacosta - Letter [↓](#) 91
- (b) Letter - Community and Development Council of Griffith Inc. [↓](#) 93



18 November 2019

NOTICE OF MOTION

Brett Stonestreet
General Manager
Griffith City Council
GRIFFITH NSW 2680

Dear Brett,

I hereby give notice of the following Notice of Motion for the Ordinary Meeting of Council to be held on Tuesday, 26 November 2019:

"That Council consider the two following issues raised by the Community and Development Council of Griffith Inc:

1. *Semi-trailer and truck parking in Watkins Avenue*
2. *Pedestrian and mobility access from Griffith Retirement Village via Coolah Street to Banna Avenue."*

Yours sincerely,

A handwritten signature in black ink, appearing to read 'Dino Zappacosta'.

DINO ZAPPACOSTA, JP
COUNCILLOR

Extract from Griffith City Council's Code of Meeting Practice – adopted 25 June 2019:

Giving notice of business to be considered at council meetings

- 3.10 A councillor may give notice of any business they wish to be considered by the council at its next ordinary meeting by way of a notice of motion. To be included on the agenda of the meeting, the notice of motion must be in writing and must be submitted by 12 pm, five business days before the meeting is to be held.
- 3.11 A councillor may, in writing to the general manager, request the withdrawal of a notice of motion submitted by them prior to its inclusion in the agenda and business paper for the meeting at which it is to be considered.
- 3.12 If the general manager considers that a notice of motion submitted by a councillor for consideration at an ordinary meeting of the council has legal, strategic, financial or policy implications which should be taken into consideration by the meeting, the general manager may prepare a report in relation to the notice of motion for inclusion with the business papers for the meeting at which the notice of motion is to be considered by the council.
- 3.13 A notice of motion for the expenditure of funds on works and/or services other than those already provided for in the council's current adopted operational plan must identify the source of funding for the expenditure that is the subject of the notice of motion. If the notice of motion does not identify a funding source, the general manager must either:
- (a) prepare a report on the availability of funds for implementing the motion if adopted for inclusion in the business papers for the meeting at which the notice of motion is to be considered by the council, or
 - (b) by written notice sent to all councillors with the business papers for the meeting for which the notice of motion has been submitted, defer consideration of the matter by the council to such a date specified in the notice, pending the preparation of such a report.

Questions with notice

- 3.14 A councillor may, by way of a notice submitted under clause 3.10, ask a question for response by the general manager about the performance or operations of the council.
- 3.15 A councillor is not permitted to ask a question with notice under clause 3.14 that comprises a complaint against the general manager or a member of staff of the council, or a question that implies wrongdoing by the general manager or a member of staff of the council.
- 3.16 The general manager or their nominee may respond to a question with notice submitted under clause 3.14 by way of a report included in the business papers for the relevant meeting of the council or orally at the meeting.



COMMUNITY AND DEVELOPMENT COUNCIL OF GRIFFITH INC.

Community concerns raised:

GRIFFITH CITY COUNCIL

1. SEMI TRAILER AND TRUCK PARKING IN WATKINS AVENUE:

For many months trucks have been parking in the space on the side of the road opposite the Harvey Norman complex.

This has developed into an unsightly situation whereby the dirt patch is full of large potholes and mud. This is exacerbated further when it rains, taking mud all over the road.

It is a bad image and eyesore for Griffith to residents and visitors and it is an unworkable situation for the trucks parking there.

It is undeniable careless on the part of council has not been able to provide at the very least compacted road base to alleviate the muddy and potholes filled water situation. Now that summer is near, the dust will also be a problem for the community.

SUGGESTION: That Griffith City Council make good the current situation on the truck parking area on Watkins Avenue, at the very least, via compacted road base.

2. PEDESTRIAN AND MOBILITY ACCESS FROM GRIFFITH RETIREMENT VILLAGE VIA COOLAH STREET TO BANNA AVENUE:

Coolah Street is a heavy pedestrian user area. In fact the Coolah Street. Plus– Watkins avenue – Sidlow Road precinct have an increased user situation. This is good for the environment, as fewer cars are used and fitness is increased.

However, no effort has been made by Griffith City Council to alleviate the dangerous situation that exists whereby people walk on the road, in particular Coolah Street.

There has also been a spike in use of mobility scooters to give the elderly freedom to get around. Furthermore with the Indian temple in Sidlow Road, it has also increased pedestrian use of the Coolah – Watkins Avenue – Sidlow Road precinct.

Coolah Street in particular has walkers, school students, and local residents who access the street to access shopping, social activities and do business in nearby shops and service facilities. It is also a highly used street by motorists.

SUGGESTION: To prevent further deterioration and/or future incidents, that council, provide a pedestrian crossing connecting Banna Avenue via Kooyoo Street, to Coolah Street all the way to the Griffith Retirement Village. This will ensure safe travels for users and aesthetically enhance the streetscape for everyone.

TITLE Outstanding Action Report

TRIM REF 19/93612

RECOMMENDATION

The report be noted.

ATTACHMENTS

(a) Outstanding Action Report - 26 November 2019 [↓](#)

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OUTSTANDING ACTION REPORT
FOR THE ORDINARY MEETING OF COUNCIL 26 NOVEMBER 2019

Council Meeting Date	MEETING ITEM	Action Officer	CRM No.	Minute No.	Council Resolution	Additional Information
22 October 2019	CL01 - PLANNING PROPOSAL 6/2019 - LOT 1791 DP 41291	CSP	77946	19/001	RESOLVED on the motion of Councillors Simon Croce and Rina Mercuri that: (a) Council endorse Planning Proposal 6/2019 set out in Attachment A that seeks amendment to Griffith Local Environmental Plan 2014; and (b) Council give delegated authority to the Director Sustainable Development to submit the Planning Proposal to the Department of Planning, Industry and Environment to seek a Gateway Determination; and (c) Should Gateway approval be granted by the Department of Planning, Industry & Environment, the Planning Proposal be placed on public exhibition for community consultation, and where identified, consult with any relevant public authority; and (d) If any submissions are received, Council considers such before the Planning Proposal is re-submitted to the Department of Planning, Industry and Environment for consideration and final assessment.	24/10/2019: Complete.

OUTSTANDING ACTION REPORT
FOR THE ORDINARY MEETING OF COUNCIL 26 NOVEMBER 2019

22 October 2019	CL02 - LITTER REDUCTION AND COMMUNITY CLEAN UPS - DRAFT POLICY	EHO	77956	19/002	RESOLVED on the motion of Councillors Mike Neville and Christine Stead that: (a) Council place the Litter Reduction and Clean Up Campaign Draft Policy on public display for 28 days. (i) If any submissions are received, a further report be prepared for Council. (ii) If no submissions are received, the reviewed policy be considered as adopted by Council as at the date of the conclusion of the advertised exhibition period. (b) Council support a trial of a community clean-up day facilitated by a community group based for the roadside reserves in and around Yenda subject to: (i) Approval by Roads & Maritime Services where required and adherence to any conditions imposed. (ii) Council assist the program with relevant resources including publicity, staff, waste removal and traffic management requirements; (iii) Council carry out an evaluation of the trial after the event in accordance with the principles detailed in NSW Litter Prevention Strategy prior to supporting and investing in further projects.	24/10/2019: Placed on Public Exhibition closing date 22 November 2019.
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OUTSTANDING ACTION REPORT
FOR THE ORDINARY MEETING OF COUNCIL 26 NOVEMBER 2019

22 October 2019	CC01 - ACQUISITION OF LAND FOR GRIFFITH SOUTHERN INDUSTRIAL LINK ROAD BROWN ROAD, THARBOGANG - PART LOT 1 DP1149538	CPO	77978	19/003	RESOLVED on the motion of Councillors Doug Curran and Brian Simpson that: (a) Council authorise the purchase of 1327.143m2 (subject to survey) of Lot 1 DP1149538 from Mrs Mary Mogliotti at the price detailed in this report and enter into a Contract of Sale. (b) Council pay all applicable costs and charges associated with the purchase of part Lot 1 DP1149538. (c) Council undertake all additional works as requested by Mrs Mary Mogliotti in the letter dated 22 July 2019. (d) Council authorise the Mayor and General Manager to execute all documents on behalf of Council under the Common Seal if required.	
24 September 2019	CL04 - Lease Agreement Over Road Reserve Adjacent to Property at Lot 11 DP:880544 Little Road Griffith	CPO	76784	19/298	RESOLVED on the motion of Councillors Mike Neville and Glen Andreazza that: (a) Council undertake public notification of the proposed license for a period of 28 days in the local newspaper and served on the owner of each parcel of land adjoining Little Road from Beaumont to Joncondon Road. (b) Bring back to Council and submissions received as a result of the public notification for consideration.	30/09/2019: Letters sent to adjoining neighbours and advertisement in The Area News Friday 4 October 2019.

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OUTSTANDING ACTION REPORT
FOR THE ORDINARY MEETING OF COUNCIL 26 NOVEMBER 2019

					(c) If no submissions are received, Council enter into a lease agreement with John Peter and Lurline C Dal Broi, trading as Obledo Management, over the adjoining road reserve to Lot 11 DP 880544 Little Road, Parish Jondaryan, County Cooper for a term of five (5) years commencing 1st October 2019, and: 1. John Peter and Lurline C Dal Broi trading as Obledo Management pay all applicable costs and charges associated with the preparation of the lease agreement together with Council's Administration Fee of \$450.00. 2. The lease fee be charged in accordance with Council's adopted Revenue Policy, currently \$131.00 (minimum) per hectare for the 2019/2020 financial year, in addition to rates and charges. 3. Council authorise the Deputy Mayor and General Manager to execute the lease agreement on behalf of Council under the Common Seal.	
13 August 2019	CL02 – Frost Control Fan Policy (CS-CP-309) - Policy Review	RTP	75083	19/255	RESOLVED on the motion of Councillors Mike Neville and Rina Mercuri that: (a) Council place the reviewed Frost Control Fan Policy (CS-CP-309) on public display for 28 days.	20/08/2019: Policy placed on public exhibition from 23 August 2019 to 19 September 2019. 30/9/2019: Report back to Council January 2020.

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OUTSTANDING ACTION REPORT
FOR THE ORDINARY MEETING OF COUNCIL 26 NOVEMBER 2019

					(b) If any submissions are received, a further report be prepared for Council. If no submissions are received, the reviewed policy be considered as adopted by Council as at the date of the conclusion of the advertised exhibition period.	
25 June 2019	CL06 – Water - Volumetric Contributions Policy	DSD and P&EM	72797	19/202	RESOLVED on the motion of Councillors Mike Neville and Dino Zappacosta that Council: (a) Revoke the Volumetric Water Contribution Policy effective from 24 May 2019 Prepare a report showing the detail of volume of water contributions made to Council since the introduction of the Volumetric Water Contribution Policy.	15/07/2019: Resolution noted. Council staff actioning recommendation. Time of financials to be confirmed. 18/11/2019: Report to January 2020 Council meeting regarding monetary value reconciliation.
11 June 2019	CL04 – Griffith Regional Sports Precinct Project	MT	72186	19/186	RESOLVED on the motion of Councillors Dino Zappacosta and Mike Neville that; (a) That Council endorse the existing Proposed Plan Stage 1 for the Griffith Regional Aquatic Leisure Centre (GRALC) Development for the construction of a 50m Pool, amenities facilities, new plant room and associated landscaping to meet the requirements of the Griffith Regional Sports Precinct Project and associated funding agreements. (b) That Council endorse in principle the Future Aspirational Master Plan	1/07/2019: Meeting scheduled with Griffith Swim Club representatives for Thursday 04/07/2019. Ongoing dialogue with Griffith Sports Council in relation to Griffith Regional Sports Precinct. Second week of July tenders called for project management services. 15/07/2019: Next meeting 25 July 2019. 5/08/2019: Tender for Project Manager for the Griffith Regional sports

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OUTSTANDING ACTION REPORT
FOR THE ORDINARY MEETING OF COUNCIL 26 NOVEMBER 2019

					for the Griffith Regional Aquatic Leisure Centre. (c) That Council staff commence preliminary consultation with key stakeholders to assist in informing the detailed design requirements for the Project including the redevelopment of West end Oval and GRALC Stage 1.	Precinct Project closes 8 August 2019. 19/08/2019: Report regarding appointment of project management to 27 August Meeting. 2/09/2019: Project Manager has been appointed. 18/11/2019: Design and Construct tender advertised for 50m pool by end December 2019.
28 May 2019	CC04 – Illegal Earthworks	DIO	71710	19/171	RESOLVED on the motion of Councillors Mike Neville and Deb Longhurst that Council proceed with legal action as described in this report.	17/06/2019: Legal action enacted. Matter has been progressed through Council's legal representatives. 18/11/2019: DA to be submitted by adjoining landowner to reinstate road reserve.
26 March 2019	Question Time – Councillor Neville – City Approaches	DIO	69173	19/108	“Being a regular visitor to Griffith I often note the approaches the city from the southern and eastern sides. Both in my view need action to improve the vista for the benefit of the city and its ratepayers.” RESOLVED on the motion of Councillors Mike Neville and Glen Andreazza that a report be presented to Council on the Hanwood Rest Area located at the intersection of the Kidman Way and Millis Road, including	11/4/2019: Considered by the Traffic Committee 2 April 2019. 01/07/2019: Progress report to 27 August 2019 Council meeting. 16/09/ 2019: Further work on this will be completed in conjunction with Entrance Strategy.

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OUTSTANDING ACTION REPORT
FOR THE ORDINARY MEETING OF COUNCIL 26 NOVEMBER 2019

					ownership, responsibility and costings to beautify the area.	11/10/2019: Survey in progress
23 October 2018	CL02 – Planning Proposal 4/2018 Lots 309 & 610 DP 751743 and Lots 102 & 104 DP 1018460 Boorga Rd, Nericon	CLPC	62830	18/334	RESOLVED on the motion of Councillors Simon Croce and Mike Neville that: (a) Council endorse Planning Proposal 4/2018 set out in Attachment A of the report that seeks amendment to Griffith Local Environmental Plan 2014 to reduce the minimum lot size requirements for the purpose of subdivision for Lots 309 & 610 DP 751709 and Lots 102 & 104 DP 1018460; and (b) Council give delegated authority to the Director Sustainable Development to submit the Planning Proposal to the Department of Planning and Environment to seek a Gateway Determination; and (c) Should Gateway approval be granted by the Department of Planning & Environment the Planning Proposal be placed on public exhibition for community consultation, and where identified consult with any relevant public authority; and (d) If any submissions are received, Council considers such before the proposal is re-submitted to the Department of Planning and	19/11/2018: Planning proposal has been forwarded to Department for consideration. 15/04/2019: To be followed up. 6/05/2019: Department of Planning has requested further information on environmental management. 3/7/2019: NSW Government Natural Resources Access Register provided watercourse and storm water management requirements to be addressed in the planning proposal. 16/09/2019: Additional information to be provided by Department of Planning & Environment (DPE). 18/11/2019: DPE have approved to go through the gate way process.

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OUTSTANDING ACTION REPORT
FOR THE ORDINARY MEETING OF COUNCIL 26 NOVEMBER 2019

					Environment for consideration and final assessment; and (e) Should this Gateway Proposal be ultimately approved by the Department of Planning and then Council finally approve the Proposal, that recommendation (f) apply to a subsequent Development application; and (f) Council, as part of the assessment of or for any future Development Application for further subdivision on the subject land and Lake Wyangan catchment, commission an independent, suitably qualified consultant to evaluate the impact of stormwater and sewage discharge from the development.	
25 September 2018	Notice of Motion – Roadway Clean Up Policy for Community Groups	DSD	61317	18/312	RESOLVED on the motion of Councillors Doug Curran and Mike Neville that Council staff investigate and formulate a policy that seeks to allow community groups to perform ongoing clean-up duties to selected and agreed sections of the Griffith City Council road network. That this policy would receive some priority in line with the current review of entrance strategies in order for any interested groups to begin cleaning up their areas early in 2019.	15/10/2018: Staff are researching programs in place in other government areas and will be reporting back to Council on 11 December 2018. 14/01/2019: Reported to Council on 11 December 2019. Fiona de Wit contacted Yenda Progress Association in December 2018. 6/5/2019: Program to commence with Yenda Rotary in June or July 2019.

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OUTSTANDING ACTION REPORT
FOR THE ORDINARY MEETING OF COUNCIL 26 NOVEMBER 2019

						19/08/2019: Policy currently being prepared. 16/09/2019: Report to go to Council in October. 18/11/2019: Draft policy on exhibition. Closing 13/12/2019.
12 June 2018	CC01 – Expression of Interest – Purchase Lake Wyangan Properties	GM	56904	18/192	RESOLVED on the motion of Councillors Mike Neville and Christine Stead that: (a) Council not accept the offer to purchase 2 Smeeth Road and 77 McCarthy Road, Lake Wyangan as described in this report. (b) Council progress discussions with relevant stakeholders to explore opportunities for a mix of housing offerings in Griffith. A further report be prepared for Council consideration as discussions progress.	2/07/2018: Letter written to proponent advising not accept offer. Council convening meeting with interested stakeholders Wednesday 4 July 2018 to discuss innovative housing proposal. 16/07/2018: Stakeholders' meeting was held on 4 July 2018. Application to State Government being prepared to support development of the land. 17/09/2018: Awaiting feedback from Premier and Cabinet. 2/10/2018: Comments requested from Department of Planning further comment Department Premier briefed Thursday 27 September 2018. 19/03/2019: Department of Premier and Cabinet not responding to EOI lodged October 2018. Report to Council Meeting 23 April

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OUTSTANDING ACTION REPORT
FOR THE ORDINARY MEETING OF COUNCIL 26 NOVEMBER 2019

						2019 recommending next steps. 15/04/2019: Further Workshop to be held 21 May 2019. 17/06/2019: To be discussed at a workshop in July. 18/11/2019: Further discussion by Councillors following adoption of Draft Housing Strategy for Griffith.
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